

THE NCA HUB

Examination Preparation

CANADIAN EVIDENCE LAW

COMPREHENSIVE STRATEGIC NOTES

Based on: Stuart, Tanovich & Dufraimont — Evidence: Principles and Problems, 14th ed. (Carswell, 2024)

Revised April 2025 Syllabus | Exam Date: April 14, 2026 (Midday)

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How to Use These Notes

These Strategic Notes provide complete, exam-focused coverage of every testable topic on the NCA Canadian Evidence Law syllabus (Revised April 2025). They function as your primary open-book reference during the examination and your structured study tool in the weeks beforehand.

PARAMETER	DETAIL
Format	Open-book. Hard copy only — no electronic devices, laptops, tablets, or phones.
Duration	3 hours (180 minutes)
Pass Mark	50% — pass/fail grading system
Exam Date	April 14, 2026 (Midday start)
Structure	Multiple choice questions (approx. 30 × 2 marks = 60 marks) + short-answer questions (approx. 40+ marks). Format varies by session.
Marking Approach	Issue identification → rule with authority → application to facts. Bare conclusions score zero. Cases must be cited.
Civil vs Criminal	30–40% of questions involve civil evidence. Rules differ. Always flag the regime.
Textbook	Stuart, Tanovich & Dufraimont, Evidence: Principles and Problems, 14th ed. (Carswell, 2024). All syllabus page references are to this edition.
Key Tip	Print and TAB this document by Part. Your goal: find any rule within 30 seconds during the exam.

Three-Step Study Method

- **Step 1 — READ:** Work through each chapter alongside the syllabus reading pages. Understand the rule, its rationale, and how courts apply it.
- **Step 2 — RECALL:** Cover the notes. Can you state the rule, the leading case, and apply it to a hypothetical? If not — re-read.
- **Step 3 — APPLY:** Work through the NCA sample exam questions. Understand why each wrong MC answer is wrong — precision is everything.

⚠ EXAM TIP — OPEN-BOOK REALITY

Examiners know your notes are in front of you. They test analysis and application — not recitation. If your answer just describes the law without connecting it to the facts, you will not pass. Every rule statement must be followed by: 'On these facts, therefore...'

Master Evidence Analysis Framework — Apply to Every Question

Every evidentiary issue, regardless of the specific rule, requires you to answer three questions in sequence. Build this reflex.

THE THREE QUESTIONS FOR EVERY EVIDENCE ISSUE	
Q1 ADMISSIBILITY	Is the evidence admissible? Identify the applicable exclusionary rule (hearsay, character, opinion, privilege, confessions, s.276). Then determine whether an exception or the principled approach allows it in. The judge decides admissibility — in criminal cases usually on a voir dire (jury excused); in civil

	cases on a motion or preliminary ruling.
Q2 PURPOSE / USE	If admissible, for what PURPOSE can the trier of fact use this evidence? Some evidence is admissible for a limited purpose only. Example: a prior inconsistent statement admitted to impeach credibility cannot be used as proof of the facts stated (unless KGB conditions are met). You MUST flag any required limiting instruction.
Q3 WEIGHT	How much weight should the trier of fact assign? Weight is distinct from admissibility. Admissible evidence can be given little or no weight: a recanted hearsay statement, a Vetrovec witness's unsupported testimony, dock identification evidence, or a signed confession later retracted.

The Universal Evidentiary Checklist

1. Is the evidence RELEVANT? (Logically probative of a fact in issue.) If not → inadmissible. Stop.
2. Does an EXCLUSIONARY RULE apply? (Hearsay? Character? Opinion? Privilege? Confessions? s.276?) If yes → presumptively inadmissible.
3. Does an EXCEPTION apply? (Traditional exception? Principled approach? Statutory provision?) If yes → potentially admissible.
4. Should the judge exercise EXCLUSIONARY DISCRETION to exclude despite technical admissibility? (Common law: PV substantially outweighs PE? Charter s.24(2): Grant test?)
5. If admitted: what is the permitted USE? Is a LIMITING INSTRUCTION required? Must the jury be warned?
6. CONCLUDE and apply to the specific facts. Never end with a bare rule statement.

⚠ EXAM TIP — CRIMINAL vs CIVIL — ALWAYS FLAG THE REGIME

This is the single most reliable mark-gaining habit in the NCA Evidence exam. Burden of proof, W(D), spousal compellability, exclusionary discretion, Charter exclusion, admissibility of prior criminal convictions, and hearsay exceptions ALL differ between criminal and civil proceedings. State the regime first, then apply the correct rules.

PART I

INTRODUCTION TO THE LAW OF EVIDENCE

Chapter 1: The Purpose, Function, and Forum of Evidence Law

1.1 What Is Evidence Law?

Evidence law is the body of rules that governs: (1) what information may be placed before a trier of fact; (2) how that information is presented; and (3) how it may be used in reaching a decision. Every piece of information tendered in legal proceedings is subject to evidentiary rules before the trier of fact may consider it.

The law of evidence is not uniform across all proceedings. It operates differently in criminal proceedings (governed primarily by the Canada Evidence Act (CEA), the Criminal Code, the Charter, and the common law) and civil proceedings (governed by provincial evidence legislation, such as the Ontario Evidence Act, and the common law). The NCA exam tests both regimes.

1.2 The Purpose of Exclusionary Rules — Why We Exclude Evidence

The exclusionary rules are not arbitrary. Each reflects a principled reason — often multiple reasons — for keeping certain information from the trier of fact. Understanding the rationale helps you identify when each rule applies and when exceptions are justified.

EXCLUSIONARY RULE	RATIONALE FOR EXCLUSION
Hearsay	Out-of-court statements are presumptively unreliable: they were not made under oath, were not subject to cross-examination, and the trier of fact cannot assess the declarant's demeanour when making them.
Bad Character Evidence	Propensity reasoning — inferring that because someone has done bad things before they probably did the bad thing charged — is logically weak, prejudicial, and distracts the jury from the specific charge.
Opinion Evidence	The trier of fact should form its own conclusions from the facts observed. Lay and expert opinions risk usurping the jury's fact-finding function if uncontrolled.
Privilege	Certain relationships (lawyer-client, spousal) and social interests (informant protection, settlement negotiation) are so important to the administration of justice that they override the general interest in having all relevant evidence available.
Sexual Activity Evidence (s.276 CC)	The 'twin myths' — (1) prior consent implies current consent; (2) prior sexual activity makes the complainant less credible — are not rationally connected to the relevant inferences and cause serious prejudice. Parliament encoded their exclusion in s.276 CC.
Confessions obtained by oppression	Such confessions are both unreliable (the accused may have confessed falsely to stop the oppression) and undermine the integrity of the justice system.

1.3 The Adversarial Forum — How the System Shapes Evidence Law (Syllabus pp. 31–37)

Canadian courts operate on the adversarial model: two opposing parties present their cases before a neutral adjudicator. This is not merely a procedural formality — it profoundly shapes every evidentiary rule.

- **Party control:** Parties decide what evidence to tender. The judge does not gather evidence or call witnesses (except in exceptional circumstances). This makes the parties' tactical choices crucial — what is not tendered is generally not before the court.
- **Oral presentation:** Evidence is presented orally through witnesses. This makes cross-examination possible and central. The ability to test a witness's account through cross-examination is often called 'the engine of truth' — it is the primary tool for exposing unreliable evidence.
- **The jury:** Many exclusionary rules exist specifically to protect lay jurors from improperly prejudicial or unreliable evidence. In judge-alone trials, judges are presumed capable of ignoring inadmissible evidence — this affects how strictly some rules are applied and whether errors are reversible.
- **Adversarial assumption:** Each party presents its best case. The rules assume strategic, skilled advocacy. Where parties are unrepresented, courts have some flexibility — but the rules still generally apply.

The adversarial model has important limitations. Critics argue it can impede the truth-finding function because parties present only favourable evidence and may use procedural rules to exclude damaging but reliable evidence. The wrongful convictions literature points to cases where prosecutorial withholding of evidence (a violation of Stinchcombe disclosure obligations) combined with unreliable evidence (false confessions, flawed eyewitness identification) produced unjust outcomes.

⚠ EXAM TIP — CRITICAL REFLECTION QUESTIONS

The NCA syllabus specifically asks candidates to 'critically evaluate the extent to which the rules of evidence can safeguard against wrongful convictions and biased decision making.' This is not a throwaway instruction. If a short-answer question asks you to assess a rule 'critically,' you must: (1) explain the rule and its purpose; (2) identify how it CAN fail — e.g., eyewitness identification rules do not prevent juries from overvaluing unreliable identifications; (3) note any reform arguments. Flag issues of gender and racial bias where relevant.

1.4 Aboriginal Rights and Indigenous Evidence Traditions (Syllabus pp. 37–42)

The NCA syllabus explicitly covers Aboriginal rights and Indigenous evidence traditions. This topic tests your ability to recognize where mainstream evidentiary rules must be adapted in Indigenous contexts.

- Oral histories: Aboriginal oral histories — narratives passed down through generations describing the history, traditions, and land use of a community — are admissible in claims involving Aboriginal rights under s.35 of the Constitution Act, 1982. Courts may not apply Eurocentric evidentiary standards (e.g., the hearsay rule applied in its traditional form) to dismiss oral histories as inherently unreliable.
- The problem of rules designed for a European legal tradition: The common law of evidence developed in the context of written records, professional witnesses, and English legal assumptions. Aboriginal communities often have no written records of their pre-contact land use, relying instead on oral transmission. Strict application of the hearsay, opinion, and best evidence rules could make proof of Aboriginal title practically impossible.
- Judicial adaptation: Courts must adapt their approach to weigh oral history evidence appropriately, neither accepting it uncritically nor rejecting it because it does not fit a European evidentiary mould. The focus is on the characteristics of the oral tradition: consistency, internal coherence, corroboration by archaeology or historical records, and the care with which the community preserves and transmits its history.
- Standard of proof: The standard of proof for Aboriginal rights claims remains the balance of probabilities. However, courts must be sensitive to the evidentiary challenges Aboriginal peoples face in establishing pre-contact practices — the rules should not be used to set an impossible evidentiary burden.

Delgamuukw v British Columbia [1997] 3 SCR 1010

Oral histories are admissible in Aboriginal title claims. The courts must adapt the rules of evidence to give full and fair weight to s.35 rights. The strict application of the hearsay rule and the opinion rule would make proof of Aboriginal title virtually impossible and would not give effect to the reconciliation purpose of s.35. The trial judge's wholesale rejection of the oral history evidence was an error — he applied the rules of evidence developed for a 'very different world' without appropriate modification.

Mitchell v MNR [2001] 1 SCR 911

Confirms the Delgamuukw approach: oral history evidence must be 'put into its proper context.' The court must understand and assess the evidence in light of the social and cultural context in which it was created and preserved. This does not mean anything goes — courts still assess reliability, but within the context of the Indigenous tradition, not against it.

⚠ EXAM TIP — WHEN INDIGENOUS EVIDENCE IS TESTED

If your fact pattern involves an Aboriginal rights or title claim, immediately flag: (1) oral history evidence is admissible; (2) the court must adapt evidentiary rules; (3) cite *Delgamuukw*. If asked about 'critical reflection' on evidence rules and bias, flag how rules designed for European legal traditions can systematically disadvantage Indigenous claimants and how courts must be aware of this.

PART II

STRUCTURAL ELEMENTS OF THE LAW OF EVIDENCE

Chapter 2: Burden and Standard of Proof

Burden and standard of proof is one of the highest-yield topics on the NCA Evidence exam. Multiple choice questions and short-answer questions regularly test: who bears each burden, what the applicable standard is, how they interact with credibility assessment via W(D), and how civil and criminal standards differ.

2.1 The Two Types of Burden

BURDEN TYPE	DEFINITION AND OPERATION
Evidential Burden (Air of Reality)	The obligation to point to sufficient evidence to put an issue 'in play' at trial. This is not a burden of proof in the formal sense — it does not require the party to persuade the trier of fact. It merely requires that there be sufficient evidence that, if believed, a reasonable jury could give effect to the defence or issue. If there is no air of reality to a defence, the judge will not put it to the jury. Example: for a defence of provocation, there must be some evidence that the accused was actually provoked before the judge must put the issue to the jury.
Persuasive Burden (Legal Burden)	The obligation to actually prove a fact to the required standard of proof. This is the 'real' burden — the one that determines who wins. In a criminal case, the Crown bears the persuasive burden to prove every element of the offence beyond a reasonable doubt. Failure to discharge the persuasive burden means the party bearing it loses on that issue.

2.2 The Criminal Standard — Beyond a Reasonable Doubt (BARD)

The Crown bears the legal burden of proving each element of the offence beyond a reasonable doubt. This flows from the presumption of innocence guaranteed by s.11(d) of the Charter.

R v Lifchus [1997] 3 SCR

The definitive instruction on what 'reasonable doubt' means. A

320	reasonable doubt: (1) is not based on sympathy or prejudice; (2) is logically connected to the evidence or the absence of evidence — not based on imagination; (3) is not a frivolous or speculative doubt; (4) is based on reason and common sense; (5) does not require proof of absolute certainty; but (6) is something more than proof that the accused is probably guilty. If, after careful and impartial consideration, you are not sure the accused committed the offence, you must acquit.
R v Starr [2000] 2 SCR 144	Instructing a jury that reasonable doubt is 'something more than probable guilt' is correct. But instructing that reasonable doubt is 'a doubt based on common sense' without more risks setting the standard too low. The charge must make clear that the standard is much closer to absolute certainty than to the balance of probabilities.

Who Bears the Burden?

- Crown: Always bears the persuasive burden to prove the elements of the offence BARD. This cannot be reversed by statute for the elements of a true criminal offence — such a reversal would violate s.11(d) Charter and be unconstitutional.
- Accused: Bears the evidential burden to raise defences (i.e., point to sufficient evidence for an 'air of reality'). For some specific defences, the accused bears the persuasive burden on the balance of probabilities — this is constitutionally permissible if the defence does not negate an element of the offence and can be justified under s.1 Charter. Examples: mental disorder (s.16 CC — accused proves on BOP), alibi (evidential burden only), non-insane automatism (evidential burden).
- Regulatory offences (Sault Ste. Marie): In quasi-criminal regulatory offences, the Crown proves the prohibited act; the accused bears the burden of proving due diligence on a balance of probabilities.

! WATCH OUT — REVERSE ONUS PROVISIONS

If a Criminal Code provision reverses the persuasive burden to the accused for an ELEMENT of the offence (not a defence), it presumptively violates s.11(d) Charter. If a provision reverses the burden for a DEFENCE (e.g., s.16 — mental disorder), it may survive s.1 Charter analysis. The distinction is crucial. Know: (1) is this reversing the burden for an element or a defence? (2) Can it be justified under s.1 Oakes?

2.3 The W(D) Framework — Credibility in Criminal Cases

The W(D) framework is mandatory in every criminal case where the accused testifies and credibility is in issue. It is the framework for applying the reasonable doubt standard to conflicting testimony. Failure to apply it correctly is reversible error.

R v W(D) [1991] 1 SCR 742 — THREE QUESTIONS FOR CREDIBILITY ASSESSMENT	
First Question	If you believe the evidence of the accused, you must acquit. Rationale: If the accused's account is credible, the Crown has not eliminated the innocent explanation — there is no proof of guilt beyond a reasonable doubt.
Second Question	If you do not believe the accused's testimony, but you are left in reasonable doubt by it, you must acquit. Rationale: Even a witness the jury disbelieves may raise a doubt. The jury

	cannot resolve the doubt against the accused simply because they prefer the Crown's witnesses.
Third Question	Even if you are not left in doubt by the evidence of the accused, ask yourself whether, on the basis of the evidence you do accept, you are satisfied beyond a reasonable doubt of the guilt of the accused. Rationale: The ultimate question is whether the Crown's evidence, accepted as reliable, proves guilt beyond a reasonable doubt on its own. The jury does not win by disbelieving the accused — they must affirmatively believe the Crown case to BARD.

What W(D) prevents: The trial of credibility. The jury cannot simply ask 'who do I believe — the complainant or the accused?' and convict if they prefer the complainant. Even if they prefer the Crown witnesses, they must ask whether the accused's account (or other defence evidence) leaves them in doubt.

R v W(D) [1991] 1 SCR 742	The trial judge erred by instructing the jury that the case came down to credibility and they must decide which witness to believe. This turns the trial into a credibility contest and misstates the burden of proof. The accused does not need to prove anything. The Crown must disprove the accused's account (or at least not leave the jury in doubt) to secure a conviction. W(D) provides the correct three-question framework.
R v JHS [2008] SCC 30	W(D) applies in judge-alone trials as well as jury trials. The judge does not have to use the W(D) words verbatim, but must conduct the analysis. A judge-alone conviction will be overturned if the reasons reveal that the judge treated the case as a credibility contest.
R v CWH [1991] SCJ No. 15	W(D) is mandatory when the accused testifies. Failure to give the W(D) direction in a jury trial is reversible error. The direction must be given on the accused's own evidence and on any defence evidence capable of raising a doubt.

✓ APPLICATION — W(D) SHORT-ANSWER STRUCTURE

1. Identify: 'The issue is the application of the W(D) framework to assess the accused's credibility.' 2. State W(D) rule with the three questions (cite R v W(D) [1991]). 3. Apply Q1: On these facts, if the accused's evidence is believed... 4. Apply Q2: Even if not believed, does it leave a doubt because... 5. Apply Q3: On the Crown's evidence accepted as reliable, is BARD established? 6. Conclude.

2.4 Civil Standard — Balance of Probabilities

In civil proceedings, the plaintiff must prove their case on the balance of probabilities (BOP). This means it is more probable than not (>50%) that the facts alleged are true.

FH v McDougall [2008] 3 SCR 41	There is ONE civil standard in Canada: balance of probabilities. The old rule that 'serious allegations require clearer proof' is abolished. However, cogency of evidence must be calibrated to the probability of the event: the more serious or inherently improbable the allegation, the more evidence is needed to meet the BOP standard — not because the standard is higher, but because improbable events do not become probable without compelling evidence. W(D) does NOT apply in civil cases — there is no reasonable doubt standard.
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Critical civil-criminal distinctions on burden and standard:

ISSUE	CRIMINAL	CIVIL
Standard	BARD — beyond a reasonable doubt	BOP — balance of probabilities
W(D) framework	YES — mandatory when accused testifies	NO — does not apply
Presumption of innocence	YES — s.11(d) Charter	NO — no presumption in either party's favour
Accused's right to silence	YES — s.11(c) Charter	N/A — parties are generally compellable
Effect of criminal acquittal	N/A	NOT binding — does not prevent civil finding (Toronto v CUPE)
Effect of criminal conviction	N/A	Admissible as evidence of the act (provincial evidence acts)
Adverse inference (no testimony)	NO — s.11(c) Charter prohibits	YES — court can draw adverse inference

Toronto (City) v CUPE Local 79 [2003] 3 SCR 77

A criminal acquittal is NOT binding on a civil tribunal. The different standards of proof mean the civil court can find, on a balance of probabilities, that the same act occurred even though a criminal jury was not satisfied beyond a reasonable doubt. Issue estoppel does not apply from criminal to civil proceedings in this direction. Abuse of process might prevent relitigation in extreme cases, but this is exceptional.

2.5 Standard for Preliminary Findings on Admissibility

When a judge must determine whether the foundational facts for admissibility are established (e.g., was a confession voluntary? Does the hearsay meet the principled approach?), the standard is the balance of probabilities — not BARD. The judge must be satisfied on BOP that the preconditions are met before admitting the evidence.

- Voir dire (criminal): The judge hears evidence specifically on the admissibility question. The jury is excluded. The burden depends on the issue: Crown bears the burden on voluntariness of confessions (BARD); for hearsay, the proponent bears the burden of establishing necessity and reliability (BOP).
- Civil proceedings: Admissibility issues are determined by the trial judge on a motion or, at the trial itself, on a balance of probabilities.

Chapter 3: Relevance and Inductive Reasoning

3.1 Relevance — The Gateway to Admissibility

No evidence is admissible unless it is relevant. Relevance has two components:

CONCEPT	TEST / MEANING
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Logical Relevance	Evidence is logically relevant if it makes a fact in issue more or less probable than it would be without the evidence. The threshold is low — any tendency to affect probabilities suffices. Most evidence clears this bar easily.
Legal Relevance / Materiality	The fact that the evidence makes more or less probable must actually be in issue in the proceeding. Evidence going to something not disputed is not material. However, on the NCA exam, you are told to ASSUME relevance and materiality — do not spend time on this analysis unless specifically asked.
Probative Value vs. Prejudicial Effect	Even logically relevant evidence may be excluded if its prejudicial effect substantially outweighs its probative value. This is the basic exclusionary discretion of the trial judge. The threshold is high — probative value must be SUBSTANTIALLY outweighed.

! WATCH OUT — NCA EXAM INSTRUCTION

The NCA sample exam instruction reads: 'Assume that all proffered evidence is relevant and material. No marks will be awarded for any discussion of relevance or materiality.' Unless a question specifically asks about relevance, skip it. Start your analysis at the exclusionary rule stage.

3.2 Inductive Reasoning in Evidence

Evidence law relies on inductive reasoning — drawing general conclusions from specific observations. Every inferential chain from evidence to verdict involves inductive reasoning, and the law controls which inferences are permissible.

TYPE OF EVIDENCE	DEFINITION AND EXAMPLE
Direct Evidence	Evidence that directly proves a fact in issue without requiring inference. Example: a witness who saw the accused fire the gun. If believed, direct evidence proves the fact.
Circumstantial Evidence	Evidence that requires the trier of fact to draw one or more inferences to connect it to a fact in issue. Example: the accused's fingerprints at the scene prove they were there, but not that they committed the offence. The trier of fact must reason from 'accused's fingerprints were found' to 'accused was there' to 'accused committed the offence.'

Circumstantial evidence is not inherently less reliable than direct evidence. Many of the strongest cases are built entirely on circumstantial evidence. However, juries may need instructions on how to reason from circumstantial evidence to avoid logical errors.

R v Griffin [2009] SCC 28

Correct instruction for circumstantial evidence: The jury does not need to be satisfied that guilt is 'the only rational conclusion' from the circumstantial evidence — this formulation sets the bar too high. The correct instruction is: on the totality of all the evidence (including circumstantial), are you satisfied beyond a reasonable doubt of guilt? The jury must consider all available inferences, including innocent ones, in determining whether BARD is met.

3.3 Exclusionary Discretion in Criminal Cases — Common Law

Even where evidence is admissible under no specific exclusionary rule, the trial judge has a common law discretion to exclude evidence whose prejudicial effect substantially outweighs its probative value.

- The threshold is high: the prejudice must be substantial — not merely equal to or slightly exceeding probative value. Where it is close, the evidence should be admitted.
- Types of prejudice: (a) moral prejudice — risk that jury will convict because the accused is 'a bad person'; (b) reasoning prejudice — risk that the evidence will distract the jury from the real issues; (c) unfair surprise.
- The discretion is exercised case by case. The judge may also admit with a limiting instruction to reduce prejudice.

3.4 Charter s.24(2) — The Grant Test for Exclusion

Where evidence was obtained in violation of a Charter right, s.24(2) requires courts to exclude it if admission would bring the administration of justice into disrepute. This is NOT automatic exclusion — it requires a balancing analysis.

R v GRANT [2009] SCC 32 — THE THREE-LINE BALANCING TEST	
Line 1 Seriousness of Charter-infringing conduct	How serious was the state misconduct that led to the Charter breach? • Deliberate, wilful, or systematic violations → strong weight toward exclusion • Technical or good faith errors → weighs toward admission • Reckless disregard for Charter rights → middle ground The question is whether admission would send a message that the courts condone serious state misconduct.
Line 2 Impact on Charter-protected interests of the accused	How seriously did the violation impact the accused's Charter-protected interests? • Serious invasions of privacy or bodily integrity → weighs toward exclusion • Relatively minor intrusions → weighs toward admission • Conscripted evidence (the accused was compelled to provide evidence against themselves) is treated more seriously than discovered evidence (evidence existed independently of the breach) Note: Statements obtained in violation of s.10(b) (right to counsel) are typically treated as seriously impacting the accused's interests.
Line 3 Society's interest in adjudication on the merits	Would excluding the evidence bring the administration of justice into disrepute? • Reliable evidence of a serious offence → society has a strong interest in admission • Unreliable evidence or evidence of minor offences → less weight • This line pulls in the opposite direction from the first two — it asks whether the public would lose faith in the justice system if reliable evidence of serious crime were excluded due to a minor breach Balance all three lines to reach a conclusion.
R v Grant [2009] 2 SCR 353	Replaced the Collins/Stillman framework with a three-line balancing test. The focus is on the long-term reputé of the justice system — viewed from the perspective of a reasonable person aware of all the circumstances, including the importance of Charter rights and the need for effective law enforcement. The balance between the three lines produces the final result.
R v Harrison [2009] 2 SCR	The officer made an arbitrary roadside stop to search for drugs.

494	Although the officer acted in good faith (thinking the stop was lawful), the seriousness of the privacy violation (Line 2) and the systemic nature of such stops (Line 1) outweighed society's interest in the drug evidence (Line 3). The drugs were excluded under s.24(2). Good faith alone is not sufficient — courts look at the overall picture.
R v Tim [2022] SCC 12	Recent Grant analysis in the context of a search. The SCC confirmed the three-line framework and emphasized that Line 2 (impact on accused's interests) deserves careful, contextual analysis — it is not simply about the 'conscripted vs discovered' binary from the old framework. The degree to which the breach actually invaded the accused's reasonable expectation of privacy matters.

Exclusionary Discretion in Civil Cases

Civil courts have a much narrower exclusionary discretion. Relevant evidence is generally admissible. The judge may exclude evidence where its prejudicial effect is disproportionate to its probative value, but this is rarely invoked. The Charter does not apply directly to private civil disputes (s.32 Charter — Charter applies to government action). However, courts may develop common law rules consistent with Charter values.

Chapter 4: Judicial Instructions — Limiting and Warning Instructions

Judicial instructions are a critical but often overlooked topic on the NCA Evidence exam. The sample exam directly tested the W(D) instruction, the Duncan instruction, and the Vetrovec warning. When evidence is admitted for a limited purpose, the judge MUST instruct the jury on that limitation. Failure to do so is reversible error.

4.1 The W(D) Direction (Criminal Trials)

Covered in detail in Chapter 2. Key reminders:

- Required whenever the accused testifies or whenever defence evidence could raise a reasonable doubt.
- Must be given in jury trials. In judge-alone trials, the judge must follow the W(D) logic in their reasons even without using the exact words.
- The direction must make clear: (1) if you believe the accused, acquit; (2) if you do not believe but are in doubt, acquit; (3) even disbelieving the accused, ask whether the Crown proves guilt BARD on its own evidence.

4.2 Limiting Instructions — When Evidence Is Admitted for One Purpose Only

When evidence is admissible for one purpose but not another, the trial judge must give a limiting instruction telling the jury the permitted and prohibited uses. Without a limiting instruction, the jury may use the evidence for an impermissible purpose — this is reversible error.

EVIDENCE TYPE	LIMITING INSTRUCTION REQUIRED
Prior inconsistent statement (non-KGB)	Admissible only to assess the witness's credibility — NOT as proof of the truth of its contents. Jury must not treat the prior statement as evidence of what actually happened.

Accused's criminal record (Corbett)	Admissible only to assess the accused's credibility as a witness — NOT as proof that the accused has a propensity to commit offences or that the accused committed the offence charged.
Similar fact evidence (SFE)	Where admitted for a specific purpose (e.g., identity), the jury must be instructed to use it only for that purpose and not for a general propensity inference.
Hearsay admitted for limited purpose	Where hearsay is admitted to show the statement was made (not for its truth), the jury must not treat it as proof of the facts stated.
Good character of accused	Admitted for both credibility and propensity purposes — but instruction must explain the difference and how to apply each.
Co-accused statements	Statements by one co-accused may not be used as evidence against the other — requires a limiting instruction in multi-accused trials.

4.3 The Duncan Instruction

The Duncan instruction (also known as the 'empty chair' instruction or the instruction on failure to call evidence) is an instruction the trial judge may give about the significance of a party's failure to call a witness or adduce evidence that would be expected in the circumstances.

In criminal cases, the Duncan instruction applies where the accused has failed to call a witness who would be expected to testify in support of the defence. The instruction tells the jury they may draw an adverse inference — that the witness's evidence would not have helped the accused — from the failure to call.

- Conditions for the instruction: The witness must be 'peculiarly within the power' of the party to call. If both parties had equal ability to call the witness, no instruction is given. The instruction is discretionary — the judge must consider whether it is fair to give it.
- Criminal cases — important caveat: The accused's own failure to testify CANNOT be the basis for an adverse inference instruction (s.11(c) Charter; R v Noble). The instruction is only available for third-party witnesses the accused chose not to call.
- Civil cases: The adverse inference from failure to call a key witness is fully available against both plaintiff and defendant. There is no Charter protection for civil parties. Where a party fails to call a witness who would be expected to have relevant evidence, the trier of fact can infer the evidence would have been unfavourable.

△ EXAM TIP — DUNCAN INSTRUCTION IN THE EXAM

The NCA sample exam (Part B, Q7) asked: 'The Crown wants the trial judge to give a Duncan instruction. Will their request be granted?' The answer depends on whether the accused failed to call a witness peculiarly within their power. On the sample facts (Lawrence did not call his employees who might have seen him at the store), the instruction may be available. Always ask: (1) Was the witness peculiarly within the accused's power? (2) Would a jury naturally expect the accused to call this witness? (3) Is there an innocent explanation for not calling?

4.4 The Vetrovec Warning (Unsavory Witnesses)

Where a witness is inherently suspect — an accomplice, jailhouse informant, or unsavory character — the trial judge has a discretion (and sometimes an obligation) to warn the jury of the dangers of convicting based on that witness's evidence alone without independent confirmation.

- Threshold: The Vetrovec warning is required when the witness's evidence is so suspect that a reasonable person would want to know about the risks before acting on it. The judge must identify: (1) which witnesses are suspect; (2) why their evidence is suspect; (3) what independent evidence might confirm their account.

- The warning does not make the evidence inadmissible. It tells the jury to look for 'confirmatory evidence' — independent evidence that supports the key parts of the suspect testimony.
- Confirmatory evidence must be independent — it cannot come from the suspect witness themselves. It must connect the accused to the offence (not merely confirm peripheral details).

R v Vetrovec [1982] 1 SCR 811	Abolished the old mandatory corroboration warning for accomplice witnesses. The new rule: a discretionary (sometimes mandatory) 'Vetrovec warning' is required for 'unsavoury' witnesses whose evidence is inherently suspect. The warning should identify: who the suspect witnesses are, why their evidence is suspect, and what (if any) independent confirmatory evidence exists.
R v Brooks [2000] 1 SCR 237	Clarified when the Vetrovec warning is obligatory. The warning is mandatory when there is a 'realistic concern' that the jury might act on the suspect witness's testimony without independent confirmation. The more important the unsavoury witness's testimony, the stronger the case for the warning.

4.5 The Hibbert Warning — Eyewitness Identification

Where eyewitness identification evidence is central to the case, the trial judge must warn the jury of the special dangers of such evidence. An honest, confident witness can be completely wrong. The warning must identify specific factors affecting reliability.

- The jury must be told: eyewitness identification is a notoriously unreliable form of evidence even when the witness is honest and well-intentioned.
- Factors the jury must consider: duration of observation, lighting conditions, stress at the time, the witness's familiarity with the accused before the event, distance, cross-racial identification, time elapsed, and any post-event contamination (e.g., seeing the accused on social media, or seeing a news report naming them).
- Dock identification (identifying the accused in the courtroom for the first time) is treated with extreme skepticism — it is inherently suggestive because the jury knows the person in the dock is the accused.

R v Hibbert [2002] 2 SCR 445	Mandatory identification warning: The trial judge's failure to adequately warn the jury of the dangers of eyewitness identification was reversible error. The jury must be told of the specific factors that can distort an honest eyewitness's recollection. The warning is not merely advisory — it is a fundamental requirement where identification is central to the Crown's case.
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4.6 Corroboration Instructions (Abolished Categories)

Historically, corroboration warnings were mandatory for certain categories of witnesses (accomplices, children, complainants in sexual cases). These mandatory categories have been abolished by statute and case law.

Today:

- Sexual assault complainants: No corroboration requirement. A conviction may rest on the testimony of the complainant alone, without any independent confirmation. Any suggestion otherwise is wrong and reversible error.
- Children: No corroboration requirement under the CEA. A child's evidence may support a conviction on its own.
- Accomplices: No mandatory warning — replaced by the discretionary Vetrovec warning described above.

PART III

EXCLUSIONARY RULES

Chapter 5: Character Evidence

Character evidence is among the most heavily tested topics on the NCA Evidence exam. You must master the distinction between good and bad character, the different categories within bad character, and the varying rules for criminal vs civil proceedings. The sample exam tested SFE (Handy), Corbett, and rebuttal character evidence directly.

5.1 The Core Rule and Its Rationale

The general rule: Evidence of a person's character — and particularly bad character — is presumptively inadmissible if it is offered only to prove that the person acted in conformity with that character on the occasion in question. This is called the propensity inference: 'This person is the type who does X, therefore they probably did X this time.' The law disfavours this reasoning because:

- It is often inaccurate — character is not destiny; people act inconsistently with their general character all the time.
- It is highly prejudicial — jurors who learn an accused has a history of violence, fraud, or sexual offending may convict on that basis rather than on the evidence of the specific offence charged.
- It is time-consuming — litigating a person's general character turns the trial into a mini-trial of the accused's life.

5.2 Good Character Evidence — Criminal Cases

In a criminal trial, the accused may adduce evidence of their own good character. Good character evidence serves TWO purposes:

PURPOSE	MEANING AND WHEN AVAILABLE
Credibility Purpose	Good character makes it more likely the accused is telling the truth when testifying. ONLY relevant if the accused testifies. If the accused does not testify, good character on credibility is irrelevant.
Propensity Purpose (Innocent Conduct)	Good character makes it less likely the accused committed the offence charged. An accused who has always been honest is less likely to have committed fraud; an accused who has always been peaceful is less likely to have committed assault. ALWAYS available — whether or not the accused testifies.

How Good Character Is Adduced

- Through the accused's own testimony ('I have always been law-abiding and honest').
- Through character witnesses who speak to the accused's reputation in the community for the trait relevant to the charge. Note: the witness speaks to reputation, not their personal opinion of the accused.
- By cross-examining Crown witnesses on the accused's good reputation.

Crown Rebuttal of Good Character

- Once the accused puts good character in issue, the Crown may rebut it. Rebuttal can be by: (1) calling character witnesses to testify to the accused's bad reputation; (2) cross-examining the accused's character witnesses on specific instances of bad conduct (testing whether they know about the accused's prior misconduct — if they don't, their reputation evidence is weakened).
- The Crown does NOT get to introduce bad character evidence unless the accused has put good character in issue ('opened the door').

R v McNamara (No.1) [1981] 56 CCC (2d) 193 (ONCA)

Good character evidence in criminal cases serves the dual credibility and propensity purposes. When the accused puts good character in issue, the Crown may rebut. Character witnesses can be cross-examined on specific incidents inconsistent with the character trait they are vouching for — this is the legitimate way to challenge reputation evidence.

Good Character in Civil Cases

Good character of a civil litigant is generally inadmissible for propensity purposes. It may be admitted in specific circumstances: damage quantification in wrongful dismissal (employment record relevant to assess lost future earnings), or where character is directly in issue (defamation — plaintiff's reputation is the subject matter of the case).

5.3 Bad Character Evidence — The Three Categories

Where the Crown (in a criminal case) or opposing party (in a civil case) seeks to lead evidence of the accused's/defendant's prior bad conduct, it is presumptively inadmissible unless it falls into one of three recognized categories:

CATEGORY	RULE / TEST	KEY AUTHORITY
1. Similar Fact Evidence (Propensity — True Character Purpose)	Admissible when probative value SUBSTANTIALLY outweighs prejudicial effect. Requires specific identified non-propensity purpose. Strong degree of similarity needed.	R v Handy [2002] SCC 56
2. Relevant to a Material Fact	Admissible without satisfying Handy test when the bad character evidence is relevant to a fact in issue for reasons OTHER than propensity (e.g., motive, opportunity, identity, absence of mistake, narrative context).	Context-specific cases
3. Relevant to Credibility	Criminal record of testifying accused — admissible under s.12 CEA, subject to Corbett discretion. Bad character of other witnesses — admissible on cross-examination at common law.	R v Corbett [1988] SCC

5.4 Category 1 — Similar Fact Evidence (SFE): The Handy Test

SFE is the most important and complex category. The Crown argues that prior bad conduct by the accused is so strikingly similar to the conduct charged that it cannot be coincidence — it therefore legitimately supports an inference that the accused committed the current offence.

R v HANDY [2002] SCC 56 — THE SFE ADMISSIBILITY TEST

Step 1 Identify the Purpose	What specific non-propensity purpose does the SFE serve? Permissible purposes: identity (the same unusual method was used), intent (the prior act shows the accused acted with a specific intent, not by accident), actus reus (the prior act shows the event happened — not that it was accidental), knowledge, absence of mistake. The more specific and non-propensity the identified purpose, the stronger the case for admission. Vague purposes ('to show propensity to violence') will not succeed.
Step 2 Probative Value	How similar is the prior conduct to the conduct charged? Look for: same method or modus operandi, same type of victim, same location, same intent, temporal proximity, same unusual feature. The higher the degree of similarity, the higher the probative value. Connections must be specific and striking — mere similarity of offence type is insufficient.
Step 3 Prejudicial Effect	Assess: (1) Moral prejudice — will the jury convict on general bad character? (2) Reasoning prejudice — will the evidence distract from the real issues? (3) How inflammatory is the prior conduct? The more inflammatory, the greater the prejudice.
Step 4 Balance	Probative value must SUBSTANTIALLY outweigh prejudicial effect. This is a higher threshold than the common law general discretion. 'Substantially' outweigh means more than a marginal difference. Close calls should be resolved in favour of exclusion.
Step 5 Collusion	Where there are multiple similar fact witnesses, the judge must assess whether there is an air of reality to collusion between them. If the witnesses coordinated their accounts, the probative value of the 'striking similarity' may be illusory. The judge must make a voir dire finding on collusion before admitting the SFE.

R v Handy [2002] 2 SCR 908	The Crown sought to lead evidence that Handy had previously engaged in non-consensual sexual acts with his ex-wife to prove he did the same with the complainant. The SCC admitted the evidence — the degree of similarity was striking (specific sexual acts, similar pattern of ignoring resistance, same context). The Handy test was definitively articulated. The trial judge must identify the specific permitted purpose and balance PV against PE at a threshold inquiry.
MAM v JPM 2024 PECA 13	Confirms the Handy framework in a 2024 context. The court applied SFE rules carefully, emphasizing that the purposes must be specifically identified and that a strong similarity connection is required. Not mere repetition of offence-type. Read paras 1-2; 29-36 for the application of Handy to the specific facts.
Saskatchewan v Racette 2020 SKCA 2	Third-party SFE: Where the DEFENCE seeks to admit SFE about a third party to suggest the third party (not the accused) committed the offence, Handy applies — but the accused's constitutional right to make full answer and defence (s.7 Charter) is a powerful factor favouring admission. The accused's bar is lower than the Crown's. Read paras 1-45.

5.5 Category 2 — Bad Character Relevant to a Material Fact

Not all bad character evidence requires the full Handy analysis. Where the evidence is relevant to a specific material fact in issue FOR REASONS OTHER THAN propensity, the general exclusionary rule does not apply. The evidence is admissible subject to the basic relevance and discretion test.

Examples:

- **Motive:** Evidence that the accused had a financial dispute with the victim is relevant to show motive, not propensity.
- **Narrative/Context:** Sometimes evidence of prior bad acts is needed to make the rest of the story comprehensible. Example: in a fraud case, the accused's prior dealings with the victim explain the trust that was exploited — this is narrative, not propensity.
- **Absence of Mistake:** Where the accused claims the event was accidental, prior similar 'accidents' may be admissible to rebut the claim of accident — not to show propensity but to show the accused knew what they were doing.
- **Identity from Distinct MO:** Where the accused used a highly unusual method, evidence of prior similar acts may go to identity (this is also SFE, but can be analyzed as a material fact issue).

5.6 Category 3 — Bad Character Relevant to Credibility (Corbett)

When an accused testifies, their credibility is in issue. Section 12 of the Canada Evidence Act permits the Crown to cross-examine the accused on their prior criminal record. The record goes to credibility — how trustworthy the accused is as a witness — not to propensity to commit the offence.

CORBETT APPLICATION — JUDICIAL DISCRETION TO EXCLUDE/SANITIZE CRIMINAL RECORD	
The Rule	S.12 CEA: Where an accused testifies, they may be cross-examined on their prior criminal record. The record is admissible on credibility. However, R v Corbett [1988] SCC established a residual judicial discretion to exclude or sanitize the record to prevent its misuse as propensity evidence.
Timing	The defence brings a Corbett application BEFORE the accused testifies. The judge exercises discretion at that point. Factors: (1) nature of the prior convictions — crimes of dishonesty (fraud, perjury) are most probative of credibility; (2) similarity to the current charge — the more similar, the more prejudicial (increased risk of propensity misuse); (3) age of the convictions — old convictions may be less relevant; (4) whether the accused's credibility is genuinely in issue.
Possible Outcomes	Judge may: (1) allow the full record to be put to the accused; (2) sanitize — allow the number and type of convictions but not details; (3) exclude specific highly prejudicial convictions; (4) in extreme cases, exclude the entire record. The goal is to allow the jury to assess credibility while preventing propensity misuse.
Limiting Instruction	Where the record is admitted, the judge MUST instruct the jury: the criminal record goes only to credibility (is the accused a trustworthy witness?) and NOT to propensity (does the record prove the accused committed this offence?). Failure to give the limiting instruction is reversible error.

R v Corbett [1988] 1 SCR 670	Section 12 CEA allows cross-examination of the accused on their criminal record when they testify. The trial judge has a residual discretion to exclude or limit the record. The jury must be instructed the record goes only to credibility. Where the prior record is very similar to the current charge, the risk of prejudice is greatest — this weighs toward exclusion or sanitization.
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Crown Witnesses — Criminal Record on Cross-Examination

The criminal record of a Crown witness (not the accused) may be put to them in cross-examination at common law — no Corbett application is needed. Section 12 CEA is specific to the accused. For ordinary witnesses, the cross-examiner can ask about prior convictions to challenge credibility.

5.7 Rebuttal Character Evidence (Syllabus pp. 241–246)

Rebuttal character evidence becomes available where the accused has 'opened the door' to character evidence in one of these ways:

- The accused testifies to their own good character.
- Defence witnesses vouch for the accused's good character.
- Cross-examination of Crown witnesses elicits evidence of good character.

Once the door is opened, the Crown can:

- Call reputation witnesses to testify to the accused's bad reputation.
- Cross-examine the accused's character witnesses on specific instances of bad conduct (to test whether the reputation evidence is well-founded).
- In appropriate cases, lead SFE that would not have been admissible but for the accused's character claim.

⚠ EXAM TIP — CHARACTER EVIDENCE — THE COMPLETE CHECKLIST

When character evidence issues arise: (1) Is this GOOD or BAD character? (2) If good: who is putting it in issue (accused only in criminal)? For what purpose (credibility if accused testifies; propensity — innocent conduct — always)? Has the Crown rebutted? (3) If bad: identify which of the three categories. SFE → run Handy. Material fact → identify the specific fact. Credibility → Corbett if accused testifies. (4) Is a limiting instruction required? (5) Civil or criminal case — apply the right rules.

Chapter 6: Sexual Activity Evidence — Section 276 of the Criminal Code

Sexual activity evidence is governed by s.276 CC — one of the most important statutory exclusionary rules in Canadian evidence law. It is consistently tested on the NCA exam and has significant recent case law from 2024. Know this chapter cold.

6.1 The Twin Myths — Why s.276 Exists

Before the current s.276, courts admitted evidence of a complainant's prior sexual activity based on two impermissible lines of reasoning:

MYTH	THE IMPERMISSIBLE INFERENCE
Myth 1 — Consent	Prior sexual activity (especially with the accused) makes it more likely the complainant consented on this occasion. This is the 'she consented before, so she must have consented again' inference.
Myth 2 — Credibility	A woman with prior sexual experience (especially with multiple

partners) is less worthy of belief — her 'unchaste' character makes her an unreliable witness. This is the 'promiscuous women lie' inference.

Both myths are empirically false and deeply prejudicial. Parliament enacted s.276 to eliminate them from Canadian courts.

R v Seaboyer [1991] 2 SCR 577

The SCC struck down the original rape shield law as unconstitutional — it went too far by excluding evidence that could be relevant to the accused's right to make full answer and defence. The Court articulated the constitutional framework: evidence of the complainant's sexual history is admissible ONLY where its probative value is NOT substantially outweighed by prejudice and it goes to a specific issue beyond the twin myths. Parliament enacted the current s.276 CC in response to Seaboyer.

6.2 The Rule — Section 276 CC

Section 276(1): Evidence that the complainant engaged in sexual activity other than the subject matter of the charge is NOT admissible to support an inference that:

- (a) By reason of the sexual nature of the activity, the complainant is more likely to have consented to the sexual activity at issue (myth 1); OR
- (b) By reason of the sexual nature of the activity, the complainant is less worthy of belief as a witness (myth 2).

Section 276(2): Such evidence IS admissible if the following THREE conditions are met:

7. The evidence relates to a SPECIFIC INSTANCE or instances of sexual activity (not the complainant's general reputation for sexual activity).
8. The evidence is RELEVANT to a specific issue in the case (other than the two prohibited inferences — there must be a legitimate, non-myth purpose).
9. The PROBATIVE VALUE of the evidence is NOT substantially outweighed by the danger of prejudice to the proper administration of justice.

SECTION 276 APPLICATION PROCEDURE	
Step 1 Notice	Defence must give written notice to the Crown and the court specifying: (a) the sexual activity evidence sought to be admitted; (b) the issue to which it is relevant; (c) the relevance of the evidence to that issue.
Step 2 In Camera Hearing	The judge holds an in camera hearing (jury and public excluded; complainant has standing to participate). The defence leads evidence to establish the three conditions of s.276(2). The judge reviews the evidence without the jury.
Step 3 Bipartite Test	(a) Does the evidence relate to a specific instance(s) of sexual activity? (b) Is it relevant to an issue in the case other than through the twin myths? (c) Is probative value not substantially outweighed by danger of prejudice to the administration of justice?
Step 4 Ruling and Sealing	If admissible, the judge specifies the permitted purpose for which the evidence may be used — the jury will hear it only in that context. The record of the in camera hearing is sealed.
Burden	The defence bears the burden of establishing the three preconditions of s.276(2) on the balance of probabilities.

6.3 Recent Case Law — R v TWW 2024 SCC 19

R v TWW is the most important recent SCC case on s.276 and is specifically listed in the 2025 Evidence syllabus. Read paras 1-18; 24-54; 118-131.

R v TWW 2024 SCC 19	The SCC clarified the analytical framework for s.276 applications. Key holdings: (1) Section 276(1) excludes evidence offered to support EITHER twin myth — the twin myths are not just general propositions but specific logical connections between the evidence and the inference drawn. (2) The court must ask: WHY is the defence offering this evidence? What inference does it support? If the inference runs through the twin myths → excluded by s.276(1). If the inference is legitimate and does not run through the myths → s.276(2) applies and the three conditions must be met. (3) Evidence may be relevant for a legitimate purpose even where it also has some twin-myth relevance — the question is whether the legitimate purpose can be achieved without the myth-based reasoning. (4) Recent cases of sexual activity between the complainant and the accused that are directly relevant to consent may have heightened legitimacy — but still cannot be admitted through myth-based reasoning.
R v Reimer 2024 ONCA 519	Applies the TWW framework to a specific fact pattern. The ONCA confirmed: (1) Trial judges must carefully identify the specific purpose for which s.276 evidence is sought; (2) 'Narrative' purposes (evidence needed to make the overall story coherent) may satisfy s.276(2) if properly established; (3) The in camera procedure is mandatory and cannot be shortcut; (4) A ruling without proper analysis of each s.276(2) condition is reversible error.

✓ APPLICATION — SECTION 276 EXAM CHECKLIST

Step 1: Identify the evidence — what specific sexual activity is the defence seeking to admit? Step 2: What inference does the defence draw from it? Does this inference run through Myth 1 (consent) or Myth 2 (credibility)? If yes → s.276(1) excludes it. Stop unless another purpose exists. Step 3: Is there a non-myth legitimate purpose? (e.g., to explain physical injuries, establish context, rebut recent fabrication, show DNA origin). If yes → apply s.276(2). Step 4: Is it a specific instance? Step 5: Is it relevant to the specific identified issue? Step 6: PV vs prejudice test. Step 7: Note the in camera procedure and notice requirements.

! WATCH OUT — s.276 DOES NOT REQUIRE A SEXUAL RELATIONSHIP

Section 276 applies to sexual activity with the accused AND with third parties. The prior sexual activity need not be 'prior sexual history with the accused' to engage s.276. Any sexual activity other than the subject matter of the charge is covered.

Chapter 7: Hearsay Evidence

Hearsay is the most complex and most frequently tested topic in the NCA Evidence exam. The sample exam devoted multiple sections to it. You must master the definition, the principled approach (the core modern rule), and all the traditional exceptions, as well as the distinct treatment of identification evidence.

7.1 The Definition of Hearsay

An out-of-court statement is hearsay if — and only if — TWO conditions are both met:

10. The statement was made OUTSIDE the current proceedings (i.e., not from the witness stand in this trial);
AND
11. It is being tendered to prove the TRUTH OF ITS CONTENTS — i.e., to prove that what was said actually reflects reality.

Condition 2 is the critical one. The same words may or may not be hearsay depending entirely on WHY they are being offered:

STATEMENT AND HOW TENDERED	HEARSAY?
'The light was red' — offered to prove the light was red.	YES — offered for truth of contents.
'The light was red' — offered to prove the witness can speak English.	NO — truth of what was said is irrelevant to this purpose.
'The light was red' — offered to prove the driver had notice the light was red.	NO — offered to prove effect on the listener's state of mind, not truth.
Words of a threat ('I will kill you') — offered to prove the accused threatened the victim.	NO — the words themselves are the legally operative act (verbal act). Truth of what was said is irrelevant.
Words of a contract ('I accept your offer') — offered to prove contract was formed.	NO — verbal act. The words form the contract, regardless of truth.
A prior police statement by a witness who now testifies inconsistently.	DEPENDS — if offered just to show the witness said something different before (credibility), not hearsay. If offered to prove the truth of the prior statement, hearsay — apply KGB.

⚠ EXAM TIP — THE HEARSAY TRICK QUESTION

The most reliable MC trick is a statement that LOOKS like hearsay but is not offered for its truth — or vice versa. Before answering any hearsay MC question, identify: What is this statement being offered to PROVE? If the purpose doesn't require the statement to be TRUE, it is not hearsay. Common non-hearsay purposes: verbal acts, effect on listener, notice, state of mind at the time, legally operative words.

7.2 Identification Evidence as Hearsay (Syllabus pp. 367–378)

The syllabus includes a distinct section on 'Identification' as a hearsay issue (pp.367-378, separate from the fact-finding chapter on eyewitness identification). This addresses the specific problem of prior out-of-court identifications of the accused.

- The problem: A witness identifies the accused in a lineup or photo array before trial. At trial, they testify: 'That is the person who committed the crime.' The prior out-of-court identification was the actual identification — the in-court identification may be contaminated by the witness having now seen the accused in custody, in court, or in the media.

- The hearsay dimension: The prior lineup identification is technically an out-of-court statement by the witness. Where the witness now says 'yes, the person in the lineup was the criminal' — this adopts the prior statement. Where the witness cannot remember making the identification, the prior identification may need to be admitted through another witness (the officer who conducted the lineup) — raising hearsay issues.
- How it is handled: The prior identification statement is generally admissible under the 'prior identification' exception to the hearsay rule. The identification itself (pointing to the accused in a lineup) is a statement of identification. It is admissible where: (1) the identifying witness testifies and can be cross-examined; and (2) the identification was made at a time closer to the event.
- The officer's testimony: A police officer can testify that the witness pointed to a specific photograph in a lineup — this is original evidence of what the witness did (not hearsay), as long as the witness is available and can be cross-examined about it.
- Photo arrays and lineups: The procedure used must be reliable and non-suggestive. Show-ups (single person shown to witness) are highly suggestive. Sequential lineups are more reliable than simultaneous ones. The officer conducting the lineup should not know who the suspect is ('double-blind' procedure).

R v Starr [2000] 2 SCR 144

The threshold reliability test for hearsay: there must be a sufficient basis for concluding that the hearsay is reliable enough to go before the jury. This applies to the principled approach generally. Relevant to identification hearsay — an identification made in doubtful circumstances (e.g., suggestive lineup) may lack threshold reliability. Also confirmed that the standard of proof is 'closer to certainty than to probability.'

7.3 The Principled Approach to Hearsay

The principled approach is the dominant modern framework for all hearsay admissibility in Canada. Traditional categorical exceptions remain but are supplemented and sometimes displaced by the principled approach. The foundational trilogy:

R v Khan [1990] 2 SCR 531

Established the modern principled approach. A child made statements to her mother about sexual abuse by her doctor. The child was too young to testify competently. The SCC admitted the hearsay because: (1) NECESSITY — the child could not testify in the ordinary way; (2) RELIABILITY — the circumstances of the statements provided sufficient guarantees of trustworthiness (spontaneous, child used precise language beyond what a 3.5-year-old would typically know unless they had actually experienced it, no motive to fabricate at that age). The categories of hearsay exceptions are not closed — reliability and necessity are the animating principles.

R v Smith [1992] 2 SCR 915

Extended the principled approach beyond child witnesses to adult declarants. Phone calls made by the deceased to her mother shortly before her murder identified the accused as having threatened her. The deceased was dead — necessity established. The statements were made without motive to fabricate, in a spontaneous context — reliability established. Admitted under the principled approach.

R v Khelawon [2006] 2 SCR 787

The definitive SCC case. Clarified the principled approach and the concept of threshold reliability. Key holdings: (1) Threshold reliability (not ultimate reliability) is the standard at the admissibility stage — the judge does not decide whether the hearsay is actually true, only whether there is a sufficient basis to let it go to the trier of fact. (2) Reliability can be established in two ways: PROCEDURAL reliability (substitute for oath, cross-examination, or presence — e.g., the

statement was made under oath or was videotaped so the trier can assess demeanour) or SUBSTANTIVE reliability (the circumstances surrounding the making of the statement provide adequate assurance of trustworthiness — e.g., spontaneous, against interest, no motive to fabricate, corroborated). (3) The standard for admission is proof of necessity and threshold reliability on the BOP.

PRINCIPLED APPROACH — COMPLETE ANALYSIS FRAMEWORK

NECESSITY	The original declarant is unavailable to give the evidence in the ordinary way (from the witness stand, under oath, subject to cross-examination). Grounds of necessity: (1) Death; (2) Physical or mental inability to testify (illness, injury); (3) Beyond jurisdiction and cannot be compelled; (4) Legitimate claim of privilege (e.g., informer privilege); (5) Memory loss — no independent recollection; (6) RECANTATION: A witness who testifies inconsistently with their prior statement can create 'practical unavailability' — the prior evidence is now unavailable even though the witness is physically present. This is the KGB scenario.
RELIABILITY — Procedural	The statement was made in circumstances that provide an adequate substitute for the traditional safeguards of oath, presence, and cross-examination: • The statement was made under oath or solemn affirmation; • The statement was made with a warning that false statements have consequences; • The statement was videotaped (allows the trier of fact to assess the declarant's demeanour when making the statement); • The declarant was subject to some form of cross-examination at the time (e.g., examination for discovery, preliminary inquiry testimony).
RELIABILITY — Substantive	The circumstances surrounding the making of the statement provide adequate assurance of trustworthiness: • Made spontaneously (before there was time or motive to fabricate); • Made against the declarant's interest (people don't falsely confess to crimes or debts); • Corroborated by independent evidence; • Made before any litigation or dispute was anticipated (no motive to fabricate at that point); • Consistent with other known facts; • The declarant had personal knowledge of the facts stated.
STANDARD	The proponent (the party seeking admission) must prove necessity and threshold reliability on the BALANCE OF PROBABILITIES at the voir dire/admissibility hearing. The judge is not deciding whether the statement is true — only whether it is sufficiently reliable to go before the trier of fact.
RESIDUAL DISCRETION	Even where necessity and threshold reliability are established, the trial judge has a residual discretion to exclude the evidence if its probative value is substantially outweighed by its prejudicial effect, or if admission would result in an unfair trial.

7.4 Party Admissions

A party's own out-of-court statements are admissible against them without needing to satisfy the principled approach. The rationale is not reliability but adversarial fairness — a party cannot complain about their own words being used against them. Party admissions may be unreliable (they can be made in anger, under duress, or on a misunderstanding of the facts) but are admitted anyway.

TYPE OF ADMISSION	REQUIREMENTS AND NOTES
Direct / Express Admission	The party's own words — oral or written. Admissible as an exception to hearsay. No reliability threshold. Example: 'I hit the car and drove away.'
Adoptive Admission	A party who, by words or conduct, adopts another's statement as their own. Silence can constitute adoption if: (1) the party heard and understood the statement; (2) they had an opportunity to deny it; (3) denial would be natural in the circumstances. CRITICAL CAVEAT: Silence in a police interrogation context does NOT create an adoptive admission — the right to silence (s.7 and s.10(b) Charter) means the accused cannot be expected to respond.
Vicarious Admission (Agent)	Statements by an authorized agent acting within the scope of authority bind the principal. The agent must have been authorized to speak on the matter.
Co-conspirator's Admission	Statements by a co-conspirator IN FURTHERANCE of the conspiracy are admissible against all co-conspirators. Prerequisites: (1) the Crown must prove, on independent evidence, that a conspiracy existed; (2) the accused was party to it; (3) the statement was made in furtherance of (not merely in reference to) the conspiracy.

R v Gordon 2022 ONCA 799	Adoptive admissions: A witness heard the accused's companion make an inculpatory statement about the accused; the accused said nothing. The court applied the adoptive admission analysis carefully. The right to silence significantly limits when silence can be treated as adoption. The circumstances must compellingly call for a denial. In a police interrogation context, the right to silence means silence never constitutes an adoptive admission. Read paras 1-6; 46-53.
MJL Enterprises v SAL Marketing 2025 ONCA 120	Civil admissions: The ONCA confirmed party admissions in civil proceedings are admissible on the same adversarial rationale as in criminal cases. A party's prior communications (letters, emails, oral statements) that are contrary to their current litigation position are admissible as admissions. The reliability threshold of the principled approach is not required. Read paras 1-2; 14-26.

7.5 Traditional Hearsay Exceptions

EXCEPTION	KEY CONDITIONS AND NOTES
Dying Declarations (Criminal only — homicide cases)	Requirements: (1) The declarant knew they were dying and had abandoned all hope of recovery (a settled hopeless expectation of death); (2) The statement relates to the cause or circumstances of the death; (3) The declarant would have been competent to testify; (4) The declarant died. The declaration replaces the testimony the deceased would have given. Admissible in criminal homicide proceedings only at common law.

Spontaneous Utterances (Res Gestae)	The classic res gestae exception. Requirements: (1) A startling or stressful event occurred; (2) The declarant was acting under the influence/stress of that event when they spoke; (3) The statement related to the event; (4) There was no opportunity for reflection or fabrication. The spontaneity is what provides the trustworthiness — the declarant had no time to lie.
State of Mind / Emotions / Present Mental State	A statement expressing the declarant's THEN-EXISTING state of mind, intention, or emotional condition is admissible to prove that state of mind. Key: the statement must reflect a present state, not a past event. 'I am afraid of John' (present fear — admissible). 'John told me he would kill me last week' (past event — hearsay, not this exception).
Declarations Against Interest	A statement by an unavailable declarant that was, at the time of making, against the declarant's financial or penal interest (i.e., exposed them to criminal liability or financial loss) AND that a reasonable person in the declarant's position would not make unless they believed it to be true. The declarant must be genuinely unavailable (not just refusing to testify).
Past Recollection Recorded	A document that a witness made or adopted at the time of the events when those events were fresh in memory, and which the witness can confirm accurately recorded what they then knew, may be read as evidence if the witness has no current independent recollection. The document itself becomes evidence where the witness cannot recall despite reviewing it.
Prior Testimony / Examination for Discovery	A prior statement made under oath (from a preliminary inquiry, previous trial, examination for discovery) is admissible if: (1) the declarant is unavailable; (2) it was made under oath or affirmation; (3) the opposing party had an opportunity to cross-examine.
Business Records (s.30 CEA; provincial Acts)	Records made in the ordinary course of business, at or near the time of the transaction, by a person with personal knowledge who had a duty to make the record. S.30 CEA provides a broad federal business records exception. Provincial equivalents exist. The records must be made in the usual and ordinary course of business — not records specially created for litigation.

R v Nurse 2019 ONCA 260	Dying declarations: The court reaffirmed all conditions. The 'hopeless expectation of imminent death' requirement is strictly applied. Medical evidence alone is insufficient — there must be evidence the declarant themselves believed they were dying and had no hope of recovery. Read paras 1-6; 54-57; 66-76.
R v RA 2024 ONCA 696	Spontaneous utterances (res gestae): A recent ONCA case applying the res gestae exception. The court examined whether the declarant was sufficiently under the influence of the startling event to exclude the possibility of fabrication. The time elapsed between the event and the statement, and the declarant's state when making it, are the key factors. Read paras 6-7; 33-43.
Briscoe Estate v Canadian Premier Life Insurance 2012 ONCA 854	State of mind exception: Statements expressing intention or plans are admissible to prove those intentions. 'I plan to go to Vancouver next week' — admissible to prove the declarant intended to go. Cannot be used to prove what actually happened on the trip (that would be hearsay for truth of content). Read paras 1-23; 52-57.
Samuel v Chrysler 2007	Civil hearsay — declarations as to physical sensations. A party's

BCCA 431	statement about their present physical condition ('I'm in pain,' 'my back is killing me') is admissible under the physical sensations exception to prove that condition. The statement must reflect a present state, not a past injury. Relevant in personal injury litigation. Read paras 1-2; 15; 23-40.
R v DB 2024 ONCA 546	Recent ONCA hearsay case. Confirms the principled approach framework and the threshold reliability standard. Applied to prior statements of an unavailable witness. The court emphasized that corroboration of a hearsay statement goes to SUBSTANTIVE reliability — it helps establish that the statement is trustworthy even without the procedural safeguards of oath and cross-examination. Read paras 2-3; 6; 9; 19-36.
R v MacKinnon 2022 ONCA 811	Hearsay — prior consistent statements by the accused. The ONCA examined when an accused's prior consistent statements (statements made at or near the time of the event that are consistent with their trial testimony) can be admitted. Generally, prior consistent statements are not admissible to bolster credibility — but may be admissible to rebut an allegation of recent fabrication, or under the principled approach where necessity and reliability are met. Read paras 1-23; 39-51; 65-76; 102-109.
R v Dion 2025 ONCA 7	Most recent ONCA hearsay case on the syllabus. The court applied the principled approach to a prior statement by an unavailable witness and examined both procedural and substantive reliability. Confirmed: threshold reliability (not ultimate reliability) is the admissibility standard. Read paras 1-6; 27-47.

7.6 Prior Inconsistent Statements and the KGB Framework

A prior inconsistent statement (PIS) made by a witness who now testifies differently presents a special problem: the prior statement may actually be true (the witness is now lying or has a faulty memory), but the traditional rule is that PIS go only to credibility — the jury may use them to disbelieve the witness but NOT as proof of the facts they contain.

R v B(KG) [1993] 1 SCR 740	The SCC created a principled exception allowing prior inconsistent statements to be admitted for the TRUTH of their contents (not just credibility) when the principled approach is satisfied. The KGB conditions: (1) The statement was made under oath or solemn affirmation; (2) The taking of the statement was VIDEOTAPED (or there is some equivalent reliable record that captures the declarant's demeanour); (3) The witness is available for cross-examination at trial about the prior statement. Rationale: Where KGB conditions are met, necessity is established (the prior evidence is now unavailable because the witness has recanted) and threshold reliability is established procedurally (oath + video creates an adequate substitute for in-court testimony). The trier of fact can watch the videotape to assess the witness's demeanour when making the statement.
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Where KGB conditions ARE met: The PIS can be admitted as substantive evidence — the jury can accept the prior statement as the truth rather than the trial testimony. The jury is told they may rely on the prior statement as proof of what happened.

Where KGB conditions are NOT met (i.e., the statement was not under oath or not videotaped): The PIS can still be used to challenge the witness's credibility (shows inconsistency → jury may disbelieve the witness), but NOT as proof of the facts stated. Limiting instruction required.

7.7 Hearsay in Civil Cases

The principled approach applies in civil proceedings as well as criminal. However:

- Civil hearsay exceptions tend to be broader. Many provincial evidence acts contain wide business records and documents exceptions that go beyond what is available in criminal proceedings.
- The threshold for exclusion is lower in civil cases — courts apply the principled approach but are generally more willing to admit hearsay in civil proceedings where the stakes are not liberty.
- Party admissions in civil cases operate identically to criminal cases — no reliability threshold, pure adversarial rationale.
- Examination for discovery: A party's answers on examination for discovery are admissible at trial against that party as admissions. A party may read their own prior discovery evidence only if it qualifies under another admissibility rule (e.g., prior inconsistent statement for credibility purposes).

✓ APPLICATION — HEARSAY EXAM STRATEGY

Step 1: Is this an out-of-court statement offered for the truth of its contents? If not hearsay → stop, say why. Step 2: If hearsay: identify the traditional exception first (dying declaration? Res gestae? Party admission?). If a traditional exception fits → identify conditions and apply. Step 3: If no traditional exception: apply principled approach — necessity (why can't the declarant testify?) + reliability (procedural: oath/video/cross? or substantive: circumstances of trustworthiness?). Step 4: Even if admissible: note whether a limiting instruction is required on use. Step 5: Cite the applicable cases (Khan, Smith, Khelawon, and the specific 2024/2025 cases for current syllabus).

Chapter 8: The Voluntary Confessions Rule

The confessions rule is one of the most consistently tested topics in the NCA Evidence exam. Every time a police statement by the accused appears in a fact pattern, this chapter is engaged. The rule protects against unreliable confessions and ensures the state cannot compel self-incrimination.

8.1 The Common Law Confessions Rule — Foundation

The confessions rule: A statement made by an accused to a person in authority is admissible ONLY if the Crown proves beyond a reasonable doubt that the statement was made voluntarily.

CONCEPT	DEFINITION AND NOTES
Person in authority	Traditionally: police officers and Crown prosecutors. Broadly: any person the accused reasonably believed could influence their treatment or prosecution. Determined on a SUBJECTIVE test (what did the accused believe?) checked against OBJECTIVE reasonableness (was that belief reasonable?). A civilian acting as a police agent or undercover officer becomes a person in authority if the accused reasonably perceives them as such.
Statement	Any communication by the accused — oral, written, or non-verbal (e.g., a nod, pointing, physical demonstration). Includes exculpatory

	statements that the Crown might use to show the accused was lying.
Standard of proof	The Crown must prove voluntariness BEYOND A REASONABLE DOUBT. This is a high standard — reflecting the importance of the right to silence.

8.2 The Modern Confessions Rule — R v Oickle

R v Oickle [2000] SCC 38 is the definitive modern case on the confessions rule. The SCC articulated four grounds on which a confession may be involuntary:

R v OICKLE [2000] — THE FOUR GROUNDS OF INVOLUNTARINESS	
Ground 1 INDUCEMENTS	Did the police make threats or promises that were sufficiently strong to cause the accused to speak when they otherwise would not have? • Both explicit promises ('Tell us what happened and we'll make sure the Crown goes easy on you') and implicit ones ('It will be better for you if you cooperate') can amount to inducements. • Minor inducements (e.g., 'If you tell us what happened we can understand your side') may not be sufficient. • The test: Would a reasonable person in the circumstances of the accused have felt compelled to confess because of the inducement? • Quid pro quo promises — inducements that create a direct exchange (confess → benefit) are most problematic.
Ground 2 OPPRESSION	Were the conditions of the interrogation so oppressive that the accused's will was overborne? Factors indicating oppression: (1) Extended detention (particularly where the accused is not permitted to sleep, eat, or use the bathroom); (2) Deprivation of basic needs; (3) Physical discomfort or abuse; (4) Sustained psychological pressure; (5) The accused's personal vulnerability — youth, mental disorder, intoxication, intellectual disability amplify the effect of interrogation conditions. Oppression is assessed on the TOTALITY of circumstances. An interview that individually might seem acceptable may be oppressive in combination with extended detention, isolation, and previous failed interrogation sessions.
Ground 3 OPERATING MIND	Did the accused have a conscious 'operating mind' at the time of the statement — did they understand the nature of what they were saying and the consequences of making a statement to the police? • Severe intoxication, extreme exhaustion, or significant mental disorder may negate the operating mind requirement. • The test is cognitive — can the accused comprehend what they are saying and that it can be used against them? • An accused can have a diminished operating mind without it being negated entirely — the degree of impairment matters. • This is different from the Oickle oppression ground: oppression is about the interrogation environment crushing the accused's will; operating mind is about whether the accused understood what they were doing.
Ground 4 POLICE TRICKERY / ABUSE	Even if the confession is technically voluntary, it may be excluded where the police conduct was so offensive to human dignity and basic standards of

OF PROCESS	decency that admission would bring the administration of justice into disrepute. The classic example: Using an undercover officer posing as a cell mate to elicit statements AFTER the accused has invoked the right to silence (R v Hebert). This actively undermines the accused's constitutional right to choose silence. What is NOT sufficient: Police deception alone — including lying about evidence ('We have your fingerprints') — is generally not sufficient for exclusion under this ground. The deception must be 'dirty tricks' that amount to a fundamental betrayal of fair play.
R v Oickle [2000] 2 SCR 3	The modern confessions rule. Oickle was investigated for arson; police conducted a 9-hour interrogation including polygraph, minimization tactics, and implicit promises of leniency. The SCC developed the four-ground framework. The confession was ultimately admitted on the facts. Key principle: the analysis is always the TOTALITY of circumstances — no single factor is determinative. A technically voluntary confession can still be excluded under the police trickery ground.
R v Hebert [1990] 2 SCR 151	The accused invoked the right to silence and refused to speak to police. An undercover officer was placed in his cell and engaged him in conversation, eliciting a confession. The SCC excluded the confession. The undercover officer's active elicitation of a statement from a person who had invoked the right to silence is an abuse of process — it cannot be remedied by the voluntariness inquiry because the accused did not know they were speaking to a police agent.

8.3 The Reid Technique and R v Ordonio 2025 ONCA 135

The Reid Technique is a highly confrontational police interrogation method widely used in Canada and the United States. It involves: (1) presenting the accused with false evidence ('We have your DNA'), (2) minimization tactics ('It could happen to anyone — I understand you didn't mean to'), (3) maximization tactics ('If you don't cooperate the charges will be much worse'), and (4) sustained psychological pressure over long sessions. R v Ordonio 2025 ONCA 135 is specifically listed in the 2025 Evidence syllabus and directly addresses the Reid Technique.

R v Ordonio 2025 ONCA 135	The ONCA examined a confession obtained through an extended Reid Technique interrogation. Key holdings: (1) The Reid Technique alone does not automatically render a statement involuntary — Canadian courts have rejected a per se rule of exclusion. (2) However, where the Reid Technique is applied in combination with other coercive factors — extended duration, denial of sleep or comfort, the accused's vulnerability, and aggressive use of false evidence claims — it can amount to oppression under Oickle Ground 2. (3) The confrontational nature of the Reid Technique, its use of deception, and its psychological pressure must ALL be weighed in the totality of circumstances analysis. (4) Where the Reid Technique produces a statement from an accused who is young, sleep-deprived, distressed, or cognitively vulnerable, courts should be particularly attentive to the risk of a false confession. This is a 2025 case — expect it to appear on the April 2026 exam.
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! WATCH OUT — FALSE CONFESSIONS AND WRONGFUL CONVICTIONS

The NCA syllabus specifically asks candidates to assess whether evidence rules safeguard against wrongful convictions. The false confession problem is critical here. Research shows a significant proportion of wrongful convictions involve false confessions, often obtained through the Reid Technique applied to vulnerable individuals (youth, persons with intellectual disabilities or mental illness, individuals under severe stress). In a critical reflection question, you should note: (1) the Oickle framework attempts to protect against false confessions but the BARD standard is on voluntariness, not reliability; (2) a confession can be 'voluntary' in the Oickle sense yet still be false; (3) reliability of the confession content (does it contain details only the perpetrator would know?) should be assessed by the trier of fact but courts do not always scrutinize this sufficiently.

8.4 The Voir Dire Procedure

- When the Crown seeks to admit a confession, the defence may challenge it at a voir dire — a 'trial within a trial' conducted outside the jury's presence (judge-alone trials: the judge conducts the voir dire and then returns to the main trial).
- At the voir dire: (1) The Crown leads evidence to establish voluntariness BARD; (2) The accused may testify — this testimony is PROTECTED and cannot be used against the accused in the main trial; (3) The judge rules on admissibility.
- The rule of completeness: If the confession is admitted, ALL of it goes in — the Crown cannot cherry-pick the incriminating portions and exclude the exculpatory parts. The trier of fact sees the whole statement.
- Editing for prejudice: Where a statement contains references to other criminal acts, the trial judge may excise those portions to prevent unfair prejudice — but must balance this against the risk of distorting the overall picture the statement presents.

8.5 Charter Rights and Confessions

CHARTER PROVISION	APPLICATION TO CONFESSIONS
s.10(a) — Right to be informed of reason for detention	Breach may support exclusion under Grant but does not automatically render a subsequent confession involuntary at common law.
s.10(b) — Right to retain and instruct counsel without delay	MOST IMPORTANT in the confessions context. Police CANNOT question an accused after they have requested counsel and before they have had a reasonable opportunity to consult counsel. Any statement obtained in violation of s.10(b) is potentially subject to exclusion under Grant s.24(2) — and courts treat s.10(b) violations as serious (Line 2 of Grant: high impact on accused's rights).
s.7 — Right to silence	Once the accused has invoked the right to silence, police cannot use undercover techniques to actively elicit statements (Hebert). The right to silence post-charge is protected under s.7.
s.11(c) — Right not to be compelled as a witness	Protects accused at trial from being called by the Crown to testify. Does not directly protect pre-trial statements, which are governed by the common law confessions rule and the Charter's right to silence.
R v Manninen [1987] 1 SCR 1233	Section 10(b) Charter requires that police cease questioning once the accused has requested counsel, and that the accused be given a reasonable opportunity to consult counsel before questioning resumes. Breach of s.10(b) in the interrogation context is treated as a serious Charter violation — courts regularly exclude confessions obtained in

	breach of s.10(b) under Grant, even if the confession itself was technically voluntary under the common law.
R v Grandinetti [2005] SCC 5	Person in authority: the test is subjective (did the accused believe the person could influence their prosecution?) combined with an objective component (was that belief reasonable?). A private investigator who the accused knew was working with police was found to be a person in authority. The accused's subjective perception, even if mistaken, can be determinative if objectively reasonable.

△ EXAM TIP — CONFESSIONS EXAM CHECKLIST

Whenever a police statement appears in your fact pattern: (1) Was it made to a person in authority? (2) Run Oickle four grounds: inducements / oppression / operating mind / police trickery. (3) Was the right to silence invoked? (4) Was s.10(b) violated — was counsel requested and denied? (5) Was the Reid Technique used? (6) Voir dire — who bears the burden? Crown = BARD. (7) If s.10(b) was violated: also run Grant test for s.24(2) exclusion. (8) Cite Oickle; cite Ordonio 2025 if Reid Technique or prolonged/aggressive interrogation is involved.

Chapter 9: Opinion Evidence

9.1 The General Rule

Witnesses testify about facts they personally perceived — not their opinions, conclusions, or inferences. The trier of fact draws its own inferences. However, there are two recognized exceptions: lay (non-expert) opinion and expert opinion evidence.

9.2 Lay Opinion Evidence

Lay witnesses may give opinion evidence in limited circumstances where the opinion is a natural, necessary, and inseparable part of reporting their observations — cases where separating the 'raw facts' from the conclusion is impossible or artificial.

- Classic examples: Speed of a vehicle; age of a person; state of intoxication; emotional state; identity; physical health; weather conditions; quality of a sound.
- The three-part test from *R v Graat* [1982]: The opinion must be (1) rationally based on the witness's first-hand perceptions; (2) helpful to a clear understanding of the witness's testimony or of a fact in issue; and (3) not based on specialized knowledge beyond the average person — otherwise, it needs an expert.

R v Graat [1982] 2 SCR 819

The definitive lay opinion case. A non-expert witness can give an opinion on driving impairment (intoxication) without being a medical expert. The 'composite observation' principle: when the underlying facts cannot practically be separated from the overall impression (e.g., the witness says 'he was drunk' rather than listing every specific physical observation), the lay opinion is admissible. The opinion must rest on first-hand perception, not speculation.

9.3 Expert Opinion Evidence — The Mohan Test

Where specialized knowledge beyond the experience of the ordinary person is required, a properly qualified expert may give opinion evidence. The SCC established the four-part Mohan test as the gateway for expert admissibility.

R v MOHAN [1994] SCC — FOUR-PART ADMISSIBILITY TEST	
Part 1 RELEVANCE	The expert evidence must be logically relevant to a material issue in the proceeding. It must also pass a basic cost-benefit analysis: even if logically relevant, expert evidence may be excluded if its probative value is outweighed by its prejudicial effect (the Abbey gatekeeper function — see below). Typical relevance failures: evidence going to a matter not actually in dispute; evidence that answers a question the jury can answer without assistance.
Part 2 NECESSITY IN ASSISTING THE TRIER OF FACT	The evidence must provide information that is OUTSIDE the experience and knowledge of the average trier of fact and that the trier cannot derive without expert assistance. The expert must assist the trier of fact — not instruct them or dictate their conclusion. If the jury is capable of reaching the conclusion without expert help, the expert is not 'necessary.' Key limit: An expert CANNOT testify that the accused is guilty, that the accused 'fits the profile' of a typical offender, or that the complainant must be telling the truth. These are the core questions for the jury to answer.
Part 3 ABSENCE OF EXCLUSIONARY RULE	No other specific exclusionary rule prevents the admission of this evidence. The expert's evidence must comply with all other evidentiary rules — privilege, hearsay (to the extent the expert relies on hearsay to form their opinion), character evidence rules, etc.
Part 4 PROPERLY QUALIFIED EXPERT	The witness must have specialized knowledge, skill, training, or experience in the relevant field. Qualification is assessed by the trial judge — counsel 'qualifies' the expert by leading evidence of their credentials, then any party may voir dire on qualification. The threshold for qualification is relatively low — the expert need not be the world's leading authority. But the expertise must be GENUINE and in the specific area relevant to the opinion. An expert on general psychiatry is not automatically qualified to testify on the specific phenomenon of false memory syndrome.

R v Mohan [1994] 2 SCR 9	The trial court excluded expert psychiatric evidence that the accused 'did not fit the profile' of a pedophile. The SCC upheld exclusion: (1) The evidence did not meet the necessity test — it was not the kind of evidence that would be beyond the jury's competence to assess; (2) Profile evidence creates a serious risk of usurping the jury's function — if the expert says accused doesn't fit the profile of an offender, the jury may simply defer to the expert rather than assessing the evidence themselves; (3) The reliability of the 'profile' methodology was not established.
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9.4 The Abbey Gatekeeper Function

The SCC in *White Burgess Langille Inman v Abbott and Haliburton* [2015] SCC 23 (confirmed Abbey) clarified a two-stage expert admissibility analysis:

12. Stage 1 — Threshold (Mohan): Does the evidence meet all four Mohan criteria? If not → inadmissible.
13. Stage 2 — Gatekeeper: Even if Mohan is satisfied, should the judge exercise the gatekeeper function to exclude where the probative value of the expert evidence is outweighed by its risks?

Gatekeeper risks include:

- The expert usurping the jury's fact-finding function (the 'oath-helping' problem — expert essentially tells jury who to believe).
- Unreliable methodology — the expert's opinion is not based on a sufficiently reliable scientific or empirical foundation.
- Consumption of excessive trial time relative to probative value.
- Confusion of issues — complex expert evidence may mislead rather than assist.

R v Abbey 2009 ONCA 624	The ONCA clarified the two-stage framework. Stage 1: threshold — does evidence meet Mohan? Stage 2: gatekeeper — cost-benefit analysis. Even where threshold is met, the judge has a robust discretion to exclude expert evidence that poses serious risks of usurping the jury, misleading them, or that is based on methodology the court finds insufficiently reliable to assist the jury.
R v Trochym [2007] SCC 6	Expert evidence on hypnotically refreshed memory. The SCC excluded the evidence because the scientific reliability of hypnotically refreshed memory has not been established — hypnosis can create false memories that the subject believes are real, and subjects cannot reliably distinguish between their genuine memories and post-hypnotic suggestions. The evidence failed the reliability component of the Mohan/gatekeeper analysis. This case stands for the proposition that courts must assess the reliability of the methodology underlying an expert opinion, not just the credentials of the expert.
R v J(JL) [2000] SCC 51	Expert testimony about a child's credibility (offered to support the Crown's case by a child interview specialist). The SCC excluded it. An expert cannot testify that a child witness is telling the truth or behaved in a way consistent with a truthful witness. This directly usurps the jury's function as the assessor of credibility. The necessity test is not met — the jury can assess a child's credibility without expert instruction. The risk: the jury defers to the expert and does not independently assess the child's testimony.
JN v CG 2023 ONCA 77	Expert independence: In civil proceedings, experts owe a duty of objectivity and independence to the court — not to the party that retained them. An expert who acts as an advocate, who overstates conclusions, or who takes positions beyond their expertise may be excluded entirely or given minimal weight. Trial judges must exercise the gatekeeper function to ensure the quality of expert evidence. Read paras 1-7; 11-31.

9.5 Social Framework Evidence and Systemic Racism Experts

'Social framework evidence' is expert evidence that provides the trier of fact with a general understanding of social, psychological, or behavioral phenomena relevant to the case. It differs from opinion evidence about the specific facts of the case.

- Examples: Expert on the dynamics of domestic violence to explain why a victim might recant; expert on systemic racism in policing to provide context for a racial profiling claim; expert on false memory to assist the jury in evaluating eyewitness testimony.
- The NCA exam sample directly tested an expert criminologist on systemic racism in policing (Part A, Q27 — Professor Wortley). The correct answer is that such evidence is admissible as 'social framework evidence' — it provides the context (the 'lens') through which the trier of fact can understand the factual evidence in the case.
- The objection in *R v RDS* [1997] SCC 84 was that a judge who took notice of systemic racism in policing was biased. The SCC rejected this: a judge may take into account social context evidence and systemic information about racial bias in the justice system. This is not bias — it is awareness of social reality.

R v RDS [1997] 3 SCR 484

A trial judge acquitted a young Black male accused of assaulting a police officer. In her reasons, the judge referred to the 'usual' practice of police officers to overreact when dealing with non-white youth. The SCC (majority) upheld the acquittal and found no reasonable apprehension of bias. A judge may take into account social context and the reality of racial bias in the criminal justice system. Judicial awareness of social reality is not bias — it is proper judicial reasoning. Dissent: judges must not substitute their personal views of social reality for the evidence in the case.

Chapter 10: Privilege

Privilege protects certain communications from compelled disclosure in legal proceedings. Unlike most exclusionary rules (which concern reliability), privilege is grounded in the protection of important social relationships and values — the need for candid communication between lawyer and client, between spouses, between informer and police. Privilege is a powerful protection because it can override the general interest in having all relevant evidence before the court.

10.1 Solicitor-Client Privilege (SCP) — The Strongest Privilege

Solicitor-client privilege (SCP) is more than an evidentiary rule — it is a fundamental principle of the legal system. It protects confidential communications between a lawyer and their client made for the dominant purpose of obtaining or giving legal advice. The SCC has repeatedly described SCP as a 'principle of fundamental justice' and a 'near absolute' protection.

ELEMENT	CONTENT
Holder	The CLIENT. Only the client can waive SCP. The lawyer cannot unilaterally waive it. Even after the client's death, the privilege survives and can be asserted by the estate.
Scope of protection	Confidential communications (oral or written) between lawyer and client, for the DOMINANT PURPOSE of seeking or giving legal advice. Includes: letters, emails, notes of meetings, oral instructions. Does NOT include: the underlying facts (facts are not privileged merely because they were communicated to a lawyer); communications made for non-legal purposes (e.g., business advice when the lawyer is acting as a business advisor, not a legal advisor).
Class privilege	SCP is a CLASS privilege — once established, it is protected absolutely without case-by-case balancing (unlike Wigmore case-by-

	case privilege, below). The only exceptions are specifically defined.
Waiver	Express waiver: The client explicitly consents to disclosure. Implied waiver: Conduct inconsistent with maintaining privilege — e.g., the client sues the former lawyer for malpractice (waiving privilege over communications relevant to the malpractice claim); the client relies on legal advice as a defence in litigation. Waiver is not lightly inferred.

Three Exceptions to SCP

Smith v Jones [1999] 1 SCR 455	PUBLIC SAFETY EXCEPTION: Where a client communicates a serious, credible, and imminent threat of harm to an identifiable person or group, SCP (and the lawyer's duty of confidentiality) may yield to the duty to prevent serious harm. The test: (1) the threatened harm is SERIOUS (risk of death or serious bodily harm — not just embarrassment or property damage); (2) the harm is to an IDENTIFIABLE person or group; (3) the threat is CREDIBLE and IMMINENT . On the facts: a psychiatrist retained by defence counsel concluded the accused planned to kill prostitutes after release. The SCC ordered disclosure — all three conditions were met. Note: this exception applies to disclosure to appropriate authorities — it does not mean the information can be used against the client in court.
R v McClure [2001] 1 SCR 445	INNOCENCE AT STAKE EXCEPTION: Where information protected by SCP is necessary to establish the innocence of an accused person in a criminal proceeding, SCP may be overridden. Two-stage test: Stage 1 — accused must satisfy the court there is an evidentiary basis for concluding the information is necessary for full answer and defence (a genuine air of reality, not speculation); Stage 2 — the trial judge reviews the privileged material in camera and determines whether it is, in fact, necessary. The exception is NARROW : the information must be NECESSARY , not merely helpful or potentially relevant. Where legal advice to the real perpetrator directly clears the accused, this may qualify.

The third exception: **CRIME-FRAUD EXCEPTION** — SCP does not protect communications made in furtherance of a crime or fraud. A client cannot use the lawyer-client relationship as a tool for criminal activity. The privilege attaches only to legitimate legal advice. Where the client seeks to use the lawyer's services to commit or plan a crime, the communication is not privileged.

10.2 Litigation Privilege

Litigation privilege is **DISTINCT** from SCP and less powerful:

FEATURE	LITIGATION PRIVILEGE vs SCP
Duration	Temporary — ends when the litigation ends (SCP is permanent).
Holder	Both lawyer and client (SCP: client only).
Scope	Covers communications and documents prepared for the DOMINANT PURPOSE of actual or anticipated litigation — including communications with third parties (experts, investigators, witnesses) made for litigation purposes. (SCP: only covers lawyer-client communications.)
Test	Dominant purpose test: Was the dominant purpose of

	creating/obtaining the document litigation? (Blank v Canada [2006] SCC 39).
Standard	Case-by-case analysis — more flexible than SCP's class privilege.

10.3 Case-by-Case Privilege — The Wigmore Criteria

Some relationships are not automatically privileged but may attract privilege on a case-by-case basis. Courts apply the four Wigmore criteria:

14. The communication must originate in a CONFIDENCE that it will not be disclosed.
15. The element of CONFIDENTIALITY must be essential to the full and satisfactory maintenance of the relationship.
16. The relationship must be one that the COMMUNITY OUGHT TO FOSTER AND PROTECT.
17. The INJURY from disclosure must be GREATER than the benefit gained from correct disposal of the litigation.

Relationships where Wigmore has been applied: journalist-source, mediator-parties, therapist-patient (in some contexts), social worker-client. The burden is on the party asserting privilege to establish all four criteria.

10.4 Third-Party Records in Sexual Assault Cases (ss. 278.1–278.91 CC)

Where the accused in a sexual assault or domestic violence case seeks access to private records of the complainant (psychiatric records, therapy records, school records, medical records), those records are presumptively protected by the complainant's privacy and equality rights. Access requires a court order.

ACCESSING THIRD-PARTY RECORDS — BIPARTITE TEST	
Stage 1 Application	Defence files a written application specifying: (a) the records sought; (b) the basis for believing records are likely relevant to an issue at trial or to the competence of the complainant to testify; (c) why production is necessary for full answer and defence. Served on Crown, record holder, and complainant.
Stage 2 Likely Relevance	The judge determines whether the records are LIKELY RELEVANT — a threshold inquiry. Records must be relevant to an issue at trial, not just potentially interesting. Therapeutic records of abuse are not automatically relevant merely because they deal with the complainant's mental health.
Stage 3 In Camera Review	If likely relevant, the judge reviews the actual records in camera. The complainant has standing to participate.
Stage 4 Production Test	S.278.5(2): The judge must balance the accused's right to make full answer and defence against: (a) the right to privacy; (b) the right to personal security; (c) the right to equality (freedom from systemic discrimination). The judge considers enumerated factors including whether the records are necessary for a specific legal issue, whether they are reliable, and the extent to which they could distort the trial.
Conditions	If ordered produced, the judge may impose conditions: records go only to defence counsel (not the accused directly); portions irrelevant to the specific issue may be redacted; records cannot be used for any purpose other than the specified trial issue.

10.5 Marital / Spousal Privilege

TYPE	RULE
Spousal Incompetency (s.4 CEA — Criminal only)	The spouse of the accused is NOT COMPELLABLE for the Crown in criminal proceedings EXCEPT where the charge involves: (a) an offence against the spouse (assault of spouse, sexual assault of spouse); (b) an offence against a child of the spouse or accused; (c) certain listed sexual offences involving children. The spouse may CHOOSE to testify voluntarily — once they do, they are fully compellable and subject to full cross-examination. The accused cannot prevent a willing spouse from testifying.
Marital Communications Privilege (Common Law)	CONFIDENTIAL communications made between spouses DURING the marriage are privileged. Both spouses hold the privilege and must consent to waive it. The privilege SURVIVES DIVORCE for communications made during the marriage. Does NOT apply to communications made in furtherance of a crime against the other spouse or a child.

10.6 Police Informer Privilege

Police informer privilege protects the identity of persons who confidentially provide information to police. It is a class privilege — nearly absolute. The only recognized exception is where disclosure of the informer's identity is necessary to demonstrate the innocence of an accused (the 'innocence at stake' exception).

- Courts will not require disclosure of informer identity even where it might be useful to the accused — 'useful' is a lower standard than 'necessary for innocence.'
- The privilege belongs to the Crown — it is asserted by the Crown on behalf of the public interest in protecting informers.
- Where the informer also witnesses the crime they reported, courts engage in a careful analysis of whether and how to protect identity while allowing the accused to challenge the evidence.

⚠ EXAM TIP — PRIVILEGE CHECKLIST

When privilege is raised: (1) Identify the TYPE — SCP (class, near-absolute)? Litigation privilege (temporary, dominant purpose)? Wigmore (four criteria)? Third-party records (ss.278 CC procedure)? Spousal (s.4 CEA or CL)? Informer? (2) Who HOLDS the privilege? (Client for SCP; both spouses for marital CL.) (3) Has it been WAIVED — expressly or by implication? (4) Does an EXCEPTION apply — crime-fraud? Innocence at stake (McClure)? Public safety (Smith v Jones)?

PART IV

MECHANICS OF PROOF

Chapter 11: Judicial Notice and Formal Admissions

11.1 Judicial Notice — Adjudicative Facts

Judicial notice allows the trier of fact to accept a fact as proven without formal evidence, because the fact is so obviously true, notorious, or capable of immediate and accurate verification that requiring formal evidence would be wasteful.

- Adjudicative facts (specific to the case): Judicially noticed where the fact is (1) so notorious that it cannot reasonably be questioned; OR (2) capable of immediate and accurate determination from a source whose accuracy cannot reasonably be questioned (dictionary, official government publication, well-established scientific fact).
- The court must give the parties an opportunity to make submissions before taking judicial notice of an adjudicative fact that could affect the outcome.

R v Find [2001] 1 SCR 863

Judicial notice of adjudicative facts requires that the fact be beyond reasonable dispute. The court was asked to take judicial notice that jury members hold an inherent bias against persons charged with sexual offences. The SCC declined: although there may be social science evidence of such biases, they are not 'notorious' facts beyond reasonable dispute in the legal sense. Judicial notice requires near certainty, not mere probability or expert opinion.

11.2 Judicial Notice — Legislative/Social Framework Facts

Courts increasingly take judicial notice of legislative facts (facts used to inform the development of legal rules) and social framework facts (general background facts about social phenomena relevant to a legal issue in the case).

- Social framework examples: That eyewitness testimony is often unreliable even when the witness is confident; that coercive control is a common feature of domestic violence; that persons who have experienced sexual trauma may not report promptly or may recant; that Indigenous peoples have faced systemic discrimination in the justice system.
- Systemic racism in policing: Courts have increasingly accepted as a judicially noticeable fact that Black, Indigenous, and racialized individuals are disproportionately subject to police stops, searches, and arrests — systemic racial profiling exists in Canadian policing. A trial judge may take this social reality into account in evaluating evidence of police conduct.

R v Spence [2005] SCC 71

A juror challenged for cause on racial bias. The SCC established that a trial judge may draw on 'social science findings and human experience' to determine whether there is an evidential foundation for challenging jurors for cause based on racial bias. The court held that an accused who is Black or Indigenous and whose case involves race in a significant way has an automatic right to a challenge for cause on racial bias — this is supported by notorious social fact: racial prejudice exists in Canadian society and can affect juror impartiality.

11.3 Formal Admissions

Formal admissions are made by a party (typically through counsel) at or before trial, admitting the truth of specific facts. Unlike informal (evidential) admissions, formal admissions:

- Are conclusively binding — they remove the admitted fact from the issues in dispute. The opposing party does not need to prove the admitted fact.
- Are made in writing — in pleadings (civil cases), agreed statements of fact, or on the trial record.
- Can be withdrawn only with leave of the court — and leave is granted only on good cause (mistake, changed circumstances). Strategic regrets are not sufficient.

- Significantly narrow issues and save court time. Strategic use of formal admissions reflects good advocacy.

Chapter 12: Real Evidence, Documentary Evidence, and Electronic Evidence

12.1 Real Evidence — Authentication

Real evidence consists of physical objects tendered as exhibits. For a physical object to be admitted as an exhibit, it must be **AUTHENTICATED** — shown to be what it is claimed to be.

- Authentication by testimony: A witness who has personal knowledge of the object (e.g., the police officer who seized the knife from the scene) testifies it is the same object.
- Chain of custody: Establishing that the object is in substantially the same condition as when it was relevant to the case. Every person who handled the object from the scene to court should be accounted for. GAPS in chain of custody go to **WEIGHT** (how reliable is this exhibit?) — not automatically to admissibility, unless the gap raises a realistic concern about substitution or tampering.
- Photographs and videos: Authenticated by a witness who can testify the photograph or video accurately depicts the scene or events as they appeared. The person who took the photograph need not testify — any witness with knowledge of what was depicted can authenticate.

⚠ **EXAM TIP — AUTHENTICATION IS NOT HEARSAY**

A photograph, video, or physical object is **NOT** hearsay — it does not make an assertion. A surveillance video of an event is direct real evidence of what happened. The hearsay rule applies to **ASSERTIONS** made in out-of-court statements, not to photographs, videos, or physical objects. However, statements **MADE IN** a recording may be hearsay if offered for the truth of their contents.

12.2 Documentary Evidence — The Best Evidence Rule

The best evidence rule originally required production of the original of a document rather than a copy. In modern Canadian law, the rule has been significantly softened:

- Electronic documents: The Canada Evidence Act (ss.31.1–31.8 CEA) provides a complete framework for electronic documents that largely replaces the traditional best evidence rule for that category. A printout from a computer system can be admitted as evidence of its contents if there is evidence the system functioned properly.
- Secondary evidence: Copies are generally admissible where the original has been lost, destroyed, or is in the possession of the opposing party who refuses to produce it.
- The rule is most relevant today where: there is a genuine dispute about the content of a document; the original has been improperly destroyed; or there is a risk of material alteration.

12.3 Electronic Evidence (ss. 31.1–31.8 CEA)

Sections 31.1 to 31.8 of the Canada Evidence Act govern the authentication and admissibility of electronic documents (emails, computer files, text messages, social media posts, etc.).

- Section 31.1 CEA: The party seeking to admit an electronic document has the burden of proving its authenticity. Authentication can be by any admissible evidence.

- Section 31.2 CEA: The best evidence rule for electronic documents is satisfied if the electronic document is: (a) in printout form, and the system was functioning properly; OR (b) in electronic form, and there are no grounds to doubt the integrity of the system.
- Section 31.3 CEA: Where integrity of the system is challenged, the party seeking admission may respond by: evidence that the system was functioning properly; evidence that the electronic document was created in the ordinary course of business; or other evidence satisfying the court that the document is reliable.
- Section 31.8 CEA: Defines 'electronic document' broadly — any data recorded or stored on any medium or device through computer technology.
- Practical issues: Social media posts must be authenticated — the proponent must show the post was created by the person alleged (account ownership, distinctive writing style, metadata). Without authentication, the post could be by anyone.

Chapter 13: Witnesses — Competence, Compellability, and Special Measures

13.1 Competence — General Rule

All persons are presumptively competent to testify. Competence refers to a witness's legal qualification to give evidence. The general rule is presumptive competence — a specific inquiry into competence is required only when it is challenged or when specific provisions mandate it.

WITNESS TYPE	COMPETENCE RULE
Adults (generally)	Presumptively competent and compellable. No inquiry required unless specifically challenged.
Children under 14 (s.16.1 CEA)	Children do NOT take an oath. Instead, they testify if: (1) they are able to understand and respond to questions; AND (2) they promise to tell the truth. A preliminary inquiry on competence is mandatory if challenged. The court assesses ABILITY TO UNDERSTAND AND RESPOND — not intelligence or reliability. The child must promise to tell the truth before testifying.
Adults with challenged mental capacity (s.16 CEA)	A preliminary inquiry is conducted: (1) Can the witness communicate the evidence? (2) Does the witness understand the difference between truth and lie? Does the witness feel an obligation to tell the truth? If they understand the nature of an oath → sworn testimony. If not, but they can communicate accurately and understand the obligation → unsworn (promise to tell the truth, per s.16.3 CEA).
The Accused (Criminal)	Competent to testify (can choose to testify). NOT COMPELLABLE for the Crown (s.11(c) Charter — right not to be compelled as a witness against oneself). If the accused testifies, they are FULLY SUBJECT TO CROSS-EXAMINATION including on their criminal record (Corbett). The accused's failure to testify cannot be commented on adversely by the Crown or the judge (s.4(6) CEA; R v Noble [1997] 1 SCR 874).

13.2 Compellability

WITNESS TYPE	COMPELLABILITY
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Ordinary adult witnesses	Fully compellable for both Crown and defence in criminal proceedings, and for all parties in civil proceedings.
The accused (criminal)	NOT compellable for the Crown (s.11(c) Charter). Compellable for the defence — but using one accused to testify against a co-accused raises serious issues and courts exercise caution.
Spouse of accused (criminal) s.4(2)–(4) CEA	NOT compellable for the Crown EXCEPT where the charge is: (a) an offence against the spouse; (b) an offence against a child; (c) specified sexual offences involving children. Outside these exceptions, the spouse may CHOOSE to testify — the Crown cannot compel them. If the spouse volunteers, they are fully compellable.
All witnesses (civil)	Generally compellable regardless of relationship to parties. No spousal non-compellability in civil proceedings.

13.3 The Right Against Self-Incrimination for Witnesses (s.5 CEA)

A witness who is compelled to testify (and who is not the accused in the proceeding) CANNOT refuse to answer questions on the ground that the answers may incriminate them. However:

- Section 5(1) CEA: A witness is compelled to answer even self-incriminating questions.
- Section 5(2) CEA: If the witness objects to answering on self-incrimination grounds BEFORE answering, their testimony cannot be used against them in subsequent criminal proceedings. The witness must object BEFORE answering — not after.
- Section 13 Charter: Parallel protection — a witness who testifies in one proceeding cannot have that testimony used to incriminate them in another proceeding (except in a prosecution for perjury or giving contradictory evidence).
- Practical effect: Witnesses in civil proceedings (e.g., a civil defendant also facing criminal charges) can be compelled to testify in the civil case, but their civil testimony is protected from use in subsequent criminal proceedings by ss.5(2) CEA and 13 Charter.

⚠ EXAM TIP — s.5 CEA PROCEDURE

From the NCA sample exam: In the civil racial profiling case, a police officer refuses to answer questions on the grounds of self-incrimination. The correct answer: (1) In civil cases, s.5(1) CEA compels the officer to answer; (2) The officer must answer all questions; (3) Their answers cannot be used against them in subsequent criminal or police discipline proceedings (subject to s.5(2) CEA being invoked first). The officer cannot simply refuse — they must answer and can invoke s.5(2) protection.

13.4 Special Measures for Vulnerable Witnesses

MEASURE	AVAILABILITY AND CONDITIONS (Criminal Code)
Screen (s.486.2 CC)	A physical screen preventing the witness from seeing the accused (or vice versa). Presumptively available for complainants and child witnesses in sexual offence and personal violence cases. Judge must determine it is 'necessary' for other witnesses.
Closed-Circuit Television (CCTV) (s.486.2 CC)	Testimony from outside the courtroom via two-way video link. Same availability as screens. More accommodating for witnesses who cannot or should not be present in the courtroom.
Support Person (s.486.1)	A support person may sit with the witness while testifying. Available for

CC)	witnesses under 18 and witnesses with a mental or physical disability.
Videotaped Evidence-in-Chief (s.715.1 CC)	A videotaped statement made near the time of the events and adopted by the witness at trial may be admitted as the witness's evidence-in-chief. Available for complainants and child witnesses in sexual and personal violence cases. The witness must adopt the statement and be available for cross-examination.
Publication Ban (s.486.4 CC)	Mandatory for sexual offence complainants who request one. Prevents publication of information that could identify the complainant.

Chapter 14: Examination of Witnesses — Direct, Cross, and Impeachment

14.1 Examination-in-Chief — Key Rules

- Purpose: Elicit the witness's evidence coherently and persuasively.
- Leading questions prohibited: A leading question is one that suggests the desired answer in the question itself. Leading questions are NOT permitted in examination-in-chief of your own witness, EXCEPT: (1) on undisputed preliminary matters (name, address); (2) with leave of the court for hostile or adverse witnesses (s.9 CEA).
- Refreshing memory: A witness who cannot remember may review a document they made or adopted when the events were fresh. After reviewing, they testify from their refreshed memory — the document is not evidence unless the adverse party seeks to introduce it or unless past recollection recorded applies.

14.2 Section 9 CEA — Hostile/Adverse Witnesses

Where a party's own witness proves adverse in their testimony — giving evidence materially inconsistent with prior statements or displaying hostility toward the party who called them — counsel may apply under s.9 CEA for leave to cross-examine their own witness.

SECTION 9 CEA — PROCEDURE FOR HOSTILE WITNESS APPLICATION	
Step 1 Ground for Application	Counsel must establish that the witness is 'adverse.' An adverse witness gives evidence that is materially inconsistent with a prior written statement, or displays hostility that prevents the examining counsel from properly developing their case.
Step 2 Voir Dire	The judge holds a voir dire to determine: (1) Was a prior inconsistent statement made? (2) Is the witness adverse in the requisite sense? The prior statement is shown to the judge but not yet to the jury.
Step 3 Leave to Cross-Examine	If the s.9 application succeeds, the judge grants leave to cross-examine the witness on the prior statement. Counsel may now: ask leading questions; put the prior statement to the witness for explanation; challenge credibility.
Effect of PIS	The prior inconsistent statement elicited under s.9 goes to CREDIBILITY only (unless KGB conditions are met, in which case it can go in for the truth of its contents). The jury is told the statement can be used to assess whether the witness is truthful — not as proof of the facts stated.

R v Rose [1991] 65 CCC (3d) 193 (ONCA)	A Crown witness gave evidence at trial inconsistent with their police statement. The Crown applied under s.9 CEA. The ONCA confirmed the procedure: voir dire required; the court must be satisfied that the witness is 'adverse' in the technical sense; the prior statement elicited under s.9 goes to credibility, not truth. The Cassibo warning: the jury must be told they can use the inconsistency to disbelieve the witness, but cannot use the prior statement as proof of the events.
R v Cassibo [1982] 70 CCC (2d) 498 (ONCA)	The trial judge failed to give a proper limiting instruction on a prior inconsistent statement elicited under s.9 CEA. The ONCA held this was reversible error. The jury MUST be told: (1) the prior statement was elicited to challenge credibility; (2) the prior statement itself is NOT proof that the facts stated therein are true; (3) they must decide whether the trial testimony or the prior statement is more reliable — but neither is automatically treated as the truth.

14.3 Cross-Examination — Core Rules

Cross-examination has two purposes: (1) eliciting favourable evidence; (2) challenging the witness's credibility and reliability. Cross-examination is generally wide-ranging — not limited to matters raised in examination-in-chief.

RULE	CONTENT AND APPLICATION
Rule in Browne v Dunn (1893)	FAIRNESS RULE: If a party intends to contradict a witness's testimony or impugn their credibility, they MUST put the contradicting position to the witness in cross-examination, giving the witness an opportunity to explain or deny. Failure to comply entitles the trial judge to: (1) allow the witness to be recalled; (2) draw an adverse inference against the party who failed to put the matter; (3) in extreme cases, strike the contradicting evidence. Applies in civil and criminal proceedings.
R v Lyttle [2004] SCC 5 — Good Faith Basis	Cross-examiners MAY put suggestions to witnesses even if the suggestions are speculative, provided there is a 'good faith basis' — some information or evidence that makes the suggestion legitimate. Good faith does not require proof — but the examiner cannot make suggestions based on information they KNOW to be false or fabricated. The accused's right to cross-examine is a fundamental element of the right to make full answer and defence (s.7 Charter).
R v Ghorvei [1999] ONCA — Prior Judicial Findings	A cross-examiner CANNOT put to a witness that a prior judge found them to be a liar or found them guilty of prior misconduct. A prior judicial credibility finding in another proceeding is not admissible as evidence that the witness is untruthful in the current proceeding. The previous finding has no legal relevance in the current proceedings.
Collateral Fact Rule	Where cross-examination concerns a matter COLLATERAL to the issues in the case (not directly relevant to a fact in issue), the cross-examiner is generally bound by the witness's answer. They cannot call contradictory evidence to prove the collateral matter. EXCEPTIONS TO THE COLLATERAL FACT RULE: (1) Prior inconsistent statements (ss.10-11 CEA); (2) Bias or improper motive; (3) Criminal record; (4) Physical or mental incapacity affecting perception or memory.
Sections 10 & 11 CEA — Prior Inconsistent Statements	S.10 CEA: A witness may be cross-examined on any prior inconsistent statement. If the witness denies or does not recall making it, counsel can prove the statement. S.11 CEA: A witness may be cross-examined

on a prior WRITTEN inconsistent statement — counsel must first draw the witness's attention to the parts of the statement they wish to use.

14.4 Impeachment — Modes of Attacking Credibility

18. Prior inconsistent statements — ss.10 and 11 CEA (cross-examination and proof of the statement).
19. Criminal record — s.12 CEA (for the accused testifying); at common law for ordinary witnesses.
20. Evidence of BIAS or improper motive — e.g., the witness has made a deal with the Crown, has a personal relationship with a party, has a financial interest in the outcome. Not subject to the collateral fact rule — evidence can be called to prove the bias.
21. Evidence of DEFECTIVE PERCEPTION or MEMORY at the relevant time — physical incapacity, intoxication, poor lighting, distance, brief observation.
22. Reputation for untruthfulness — a character witness may testify the witness has a community reputation for dishonesty (not a personal opinion that the witness is dishonest).
23. Prior civil or criminal findings — subject to restrictions (Ghorvei for judicial credibility findings; Toronto v CUPE for criminal acquittals in civil).

14.5 Bolstering Credibility — Prior Consistent Statements

Prior consistent statements (PCS) are generally NOT admissible to bolster a witness's credibility — showing the witness said the same thing before trial does not make their testimony more reliable. The concern: a lying witness can repeat the same lie multiple times.

Admissible uses of PCS:

- To REBUT AN ALLEGATION OF RECENT FABRICATION: If cross-examination suggests the witness invented their story after a certain point (a motive to fabricate arose), a PCS made BEFORE the alleged motive arose is admissible to show the consistent account predates the motive.
- Complaint evidence in sexual assault cases: The prior complaint is admissible not for its truth but to rebut an inference that the complainant's silence is inconsistent with the offence occurring.
- Under the principled approach: A prior consistent statement satisfying necessity and reliability criteria can be admitted for the truth of its contents.

PART V

FACT-FINDING

Chapter 15: Credibility, Identification, and Circumstantial Evidence

15.1 Credibility vs. Reliability — The Critical Distinction

CONCEPT	MEANING
Credibility	Is the witness subjectively honest? Are they telling the truth as they

	believe it? A credible witness sincerely believes their account.
Reliability	Is the witness's account objectively accurate? Even a completely honest witness can be unreliable — their observation, memory, or communication may be faulty.

A trier of fact must assess BOTH dimensions. A witness can be credible but unreliable (honestly mistaken); reliable but lacking credibility (knows the truth, suspects bias). The distinction matters because the W(D) framework focuses on whether the jury BELIEVES the accused — but the jury must also ask whether, even if they do not disbelieve, they are in DOUBT because of the evidence.

15.2 Demeanour Evidence — Use with Caution

Demeanour evidence is how a witness behaves while testifying — eye contact, pauses, nervous gestures, emotional displays. Courts have historically placed significant weight on demeanour as a guide to truthfulness. Modern courts are more skeptical.

- Demeanour is culturally influenced: Different cultures have very different norms about eye contact, emotional display, and deference to authority. A witness who avoids eye contact with a judge may be perceived as evasive in mainstream Canadian culture, but in many Indigenous cultures, avoiding a superior's gaze is a sign of respect.
- Trauma can distort demeanour: Trauma survivors do not always display distress in court. Some become calm, flat, or detached. This does not mean they are lying. Courts must be careful not to require victims of sexual assault, domestic violence, or historical abuse to display emotions in the 'expected' way.
- Appellate courts generally defer to trial judges on credibility assessments based on demeanour — but appellate review is available where the credibility assessment is based on erroneous legal principles or ignores material evidence.

⚠ EXAM TIP — CRITICAL REFLECTION ON DEMEANOUR

If the exam asks you to critically evaluate credibility assessment, flag: (1) demeanour evidence is unreliable as a guide to truthfulness; (2) it disproportionately disadvantages Indigenous, racialized, and immigrant witnesses; (3) courts should focus on the internal consistency of testimony, its consistency with other evidence, and the plausibility of the account — not on how the witness 'looked' while testifying.

15.3 W(D) in Practice — Applying the Framework

Covered in Chapter 2 in detail. Key reminders for fact-finding:

- W(D) applies to ALL defence evidence capable of raising a reasonable doubt — not only the accused's own testimony. Evidence of a third-party alibi witness or any other defence evidence must be worked through the W(D) questions.
- In a judge-alone trial, the judge's REASONS must reveal W(D) analysis. Where reasons do not address how the judge applied the three questions, an appeal court may find that the judge improperly conducted a credibility contest.
- A judge's failure to expressly use W(D) language is not fatal — it is sufficient if the reasons reveal the judge understood they could not convict simply by preferring the Crown's witnesses.

15.4 Eyewitness Identification Evidence

Eyewitness identification is the single most common cause of wrongful convictions in Canada and elsewhere. It is inherently unreliable despite the confidence witnesses often display.

- Factors affecting reliability: Duration and quality of observation; lighting conditions; stress (stress impairs encoding of peripheral details while it may enhance attention to the central threat — leading to a 'weapon focus effect'); cross-racial identification (people are less accurate at identifying members of another race); distance; time elapsed between the event and the identification; any post-event contamination.
- Post-event contamination: Seeing news reports naming a suspect, seeing the suspect's photograph published, discussing the event with other witnesses — all of these can contaminate the original memory. The witness may sincerely believe their identification is based on the original observation when it is actually based on later information.
- Dock identification: An in-court identification ('I see the person in the courtroom — it's him, in the dock') is treated with extreme skepticism. The witness knows the person in the dock is the accused — the 'identification' is essentially forced. This form of identification has minimal probative value.
- Lineup procedures: Sequential lineups (presented one at a time) are more reliable than simultaneous lineups (all shown at once). Double-blind procedures (neither the officer nor the witness knows who the suspect is) minimize suggestion. Courts scrutinize lineup procedures for suggestiveness.

R v Hibbert [2002] 2 SCR 445

The failure to warn the jury about the dangers of eyewitness identification evidence was reversible error. The warning must: (1) identify the potential unreliability of eyewitness identification even by an honest, well-intentioned witness; (2) draw the jury's attention to the specific factors in the case that may have impaired the witness's observation or identification; (3) instruct the jury to scrutinize the evidence carefully before acting on it. A bare reference to 'consider all the circumstances' is insufficient.

15.5 The No Case to Meet Motion

At the conclusion of the Crown's case, the defence may bring a 'no case to meet' motion — arguing that the Crown's evidence, taken at its highest, is insufficient to support a conviction by a reasonable jury properly instructed.

- The test (from the sample exam Q8): Is there evidence on each element of the offence upon which a reasonable jury properly instructed could return a verdict of guilty? (R v Arcuri [2001] 2 SCR 828). This is the threshold test — the judge does NOT weigh the evidence or assess credibility at this stage in a jury trial.
- If the answer is YES (there is some evidence) → the defence must be called. If the answer is NO → directed verdict of acquittal.
- In a judge-alone trial: The judge may draw inferences from circumstantial evidence in assessing whether the case should go further. The standard is the same, but the judge applies a slightly more nuanced analysis.
- The motion serves as a filter against weak cases going to the jury — it protects the accused from having to answer an inadequate Crown case.

R v Arcuri [2001] 2 SCR 828

The test for no case to meet: the evidence, taken at its highest, must be capable of supporting a verdict of guilty by a reasonable jury properly instructed. The judge does not weigh or assess the reliability of the evidence — that is for the jury. Where the Crown's case is entirely circumstantial, the judge may engage in a limited weighing of the evidence to determine whether guilt is a reasonable inference from the proved facts.

15.6 Circumstantial Evidence

Circumstantial evidence requires the trier of fact to draw an inference. Unlike direct evidence (which proves the fact directly if believed), circumstantial evidence proves the fact only through a chain of inferences.

- The inference must be reasonable. The trier of fact must ask: Is guilt a reasonable inference from the proved facts? Are there other reasonable innocent inferences available? If other reasonable innocent inferences exist, the BARD standard may not be met.
- No 'only rational conclusion' instruction required: *R v Griffin* [2009] SCC 28 — the jury must be satisfied BARD, not that guilt is the 'only rational conclusion.' The only rational conclusion instruction sets too high a bar.
- Cumulative circumstantial evidence: Individual items of circumstantial evidence may each be weak, but together may be sufficient. The trier of fact considers the totality.

15.7 Corroboration — Vetrovec Warned Witnesses

Where a Vetrovec warning is given (see Chapter 4), the jury must look for 'confirmatory evidence' — independent evidence that supports the key elements of the suspect witness's account and connects the accused to the offence. Confirmatory evidence:

- Must be INDEPENDENT of the suspect witness — it cannot come from the same witness.
- Must CONFIRM the material parts of the account — peripheral corroboration (confirming irrelevant details) is insufficient.
- Must connect the ACCUSED to the offence — corroboration of events that do not implicate the accused specifically does not help.
- Need not be conclusive on its own — the combination of the Vetrovec witness's account and the confirmatory evidence can support a conviction.

PART VI

CIVIL EVIDENCE — SPECIAL TOPICS

Chapter 16: Civil Evidence — Special Topics

The NCA Evidence exam regularly includes 30–40% civil evidence questions. The sample exam (Parts A and D) extensively tested civil evidence rules. This chapter covers the key civil-specific topics that differ from the criminal regime.

16.1 Standard of Proof and Adverse Inference in Civil Proceedings

Covered in Chapter 2. Key reminders for civil-specific application:

- ONLY ONE CIVIL STANDARD: Balance of probabilities (*FH v McDougall* [2008]). No heightened standard for serious allegations. More serious allegations require more cogent evidence, not a higher standard.
- W(D) DOES NOT APPLY. The civil trier of fact is not applying reasonable doubt — they are assessing probability. A civil party's account being somewhat dubious does not automatically entitle the other party to judgment — the other party must still prove their case on the balance.

- Adverse inference: In civil proceedings, a party's failure to call a witness they could naturally be expected to call allows the trier of fact to draw an adverse inference — that the witness's evidence would have been unfavourable. This applies to both plaintiff and defendant.
- Failure to testify (civil): A civil defendant who does not testify can have adverse inferences drawn from that failure. No Charter protection (s.11(c) Charter is specific to persons charged with criminal offences).

16.2 Effect of Criminal Acquittals and Convictions in Civil Proceedings

ISSUE	CIVIL RULE
Criminal ACQUITTAL in civil proceedings	A prior criminal acquittal does NOT bind the civil court. The civil court can find, on the balance of probabilities, that the conduct occurred despite a criminal acquittal. Issue estoppel does not apply from criminal acquittal to civil proceedings in this direction. Rationale: different standards of proof — the criminal jury was not satisfied BARD, but the civil court may be satisfied on BOP. (Toronto (City) v CUPE Local 79 [2003] SCC 63)
Criminal CONVICTION in civil proceedings	A prior criminal conviction for the same conduct IS admissible as evidence in civil proceedings. In many provinces, a conviction is admissible as proof that the convicted person committed the act. The defendant may rebut this on the balance of probabilities — but the evidential weight of a conviction (reached BARD) is very high. (Ontario Evidence Act s.22.1 and equivalent provisions)
Criminal acquittal and res judicata	A civil action after a criminal acquittal is NOT barred by res judicata or issue estoppel. The civil action proceeds on different grounds (civil standard, different issues sometimes). (Toronto (City) v CUPE; Polgrain Estate v Toronto East General Hospital [2008] ONCA 646)
Toronto (City) v CUPE Local 79 [2003] SCC 63	A school custodian acquitted of sexual assault in criminal proceedings was found by an arbitrator to have committed the same acts in civil disciplinary proceedings. The SCC upheld the arbitral finding. A criminal acquittal does not prevent re-litigation in civil or administrative proceedings where the standard of proof is different. Abuse of process may bar relitigation in extreme cases of unfairness, but not routinely.
Polgrain Estate v Toronto East General Hospital [2008] ONCA 646	Confirmed the principle from Toronto v CUPE: a civil claim for damages arising from the same conduct as a criminal charge can proceed independently. The civil standard (BOP) and the criminal standard (BARD) are sufficiently different that acquittal on the criminal charge does not determine the civil outcome.

16.3 Res Ipsa Loquitur in Civil Proceedings

Res ipsa loquitur ('the thing speaks for itself') was a doctrine that allowed a court to infer negligence from the circumstances of an accident without direct evidence of negligent conduct, where: (1) the defendant had exclusive control of the instrumentality; (2) the accident was of a kind that does not ordinarily occur without negligence; and (3) the plaintiff did not contribute to the accident.

CURRENT STATUS: Res ipsa loquitur as a standalone doctrine has been absorbed into the general law of negligence. The SCC in *Fontaine v Insurance Corp of BC* [1998] 1 SCR 424 held:

- Res ipsa loquitur is NOT a distinct rule of law — it is simply a way of saying that the circumstances are such that negligence can be inferred from the accident itself.

- Where the facts established permit an inference of negligence (the defendant's negligence is the most probable explanation for what happened), the plaintiff has met their burden of proof on the balance of probabilities — and the defendant must either provide an alternative explanation or lead evidence of due care.
- The doctrine does NOT shift the LEGAL burden of proof to the defendant. The plaintiff always bears the persuasive burden. What changes is that the facts, taken together, may be sufficient for the plaintiff to satisfy that burden without further direct evidence.

Fontaine v Insurance Corp of BC [1998] 1 SCR 424

Res ipsa loquitur survives only as a phrase, not as a distinct legal rule. Where the facts permit an inference that the defendant was negligent, the plaintiff satisfies their BOP obligation. The defendant then faces an 'evidential burden' to provide a non-negligent explanation. If the defendant provides a reasonable non-negligent explanation, the inference disappears and the plaintiff must prove negligence through other evidence.

16.4 Summary Judgment and Admissibility of Evidence

On a civil motion for summary judgment, the court determines whether there is a 'genuine issue requiring trial.' The admissibility rules that apply are:

- Evidence on a summary judgment motion may include affidavits, discovery transcripts, business records, and other documents that may not meet all trial admissibility requirements. The court has flexibility to consider evidence that would be admissible at trial in some form.
- The court does NOT assess credibility comprehensively on a summary judgment motion — disputed credibility generally means there is a genuine issue requiring trial.
- HOWEVER: The court can assess whether the plaintiff's evidence, even if believed, is legally sufficient to support the claim. A plaintiff who relies on inadmissible evidence may have their claim dismissed if without that evidence there is no remaining genuine issue.

16.5 Examination for Discovery as Evidence at Trial

Examination for discovery (EFD) is a pre-trial process in civil litigation where parties are questioned under oath by opposing counsel. The transcript is admissible at trial in limited ways:

- Admissions by party: Answers given on discovery are admissible against that party as admissions — the discovering party can read discovery answers into the record at trial as evidence against the party who gave them.
- Prior inconsistent statements: A party who testifies differently at trial from their discovery evidence can be cross-examined on the inconsistency. The discovery answer can be put to them as a prior inconsistent statement under s.10 or s.11 CEA.
- A party CANNOT read their own discovery evidence into the record to bolster their testimony unless the opposing party has put the discovery to them (which then opens the door for the party to read other portions into context — the completeness principle).
- The witness answered under oath — so prior inconsistent statements from discovery are particularly powerful for impeachment.

16.6 Social Context Evidence and Systemic Racism in Civil Proceedings

As in criminal proceedings, civil courts accept expert evidence on systemic racism, racial profiling, and other social phenomena as 'social framework evidence' — background context that helps the trier of fact understand the factual evidence in the case.

R v RDS [1997] 3 SCR 484

Although a criminal case, the principles apply in civil proceedings. A

judge (or trier of fact) may take account of the reality of systemic racial bias in policing and the justice system when evaluating evidence. Awareness of social reality — including documented patterns of racial profiling — is not bias; it is proper contextual reasoning. A judge need not pretend to be ignorant of well-established social facts.

⚠ **EXAM TIP — CIVIL vs CRIMINAL ISSUES — QUICK REFERENCE**

When a civil evidence question appears: (1) BOP standard applies — not BARD; (2) No W(D); (3) No s.11(c) Charter protection for civil parties; (4) Criminal acquittal → not binding; criminal conviction → admissible evidence; (5) Adverse inference from failure to testify or call evidence; (6) Res ipsa loquitur = inference of negligence from circumstances (Fontaine); (7) Discovery answers = admissions or PIS for cross-examination; (8) s.5 CEA: compelled civil witnesses protected from criminal use of their testimony.

PART VII

EXAM STRATEGY AND ANSWER WRITING

Chapter 17: Exam Strategy for the NCA Evidence Examination

17.1 Exam Structure and Time Management

Based on the NCA sample exam, the structure is:

SECTION	MARKS / TIME ALLOCATION
Part A — Multiple Choice (~30 questions)	~60 marks Suggested: 100 minutes 2 marks each
Part B — Short Answer (Arson scenario)	~40 marks Suggested: 70 minutes 5 marks per question
Part C — Short Answer (Assault/Domestic Violence)	~55 marks Suggested: 125 minutes Varies per question (3–20 marks)
Part D — Short Answer (Civil racial profiling)	~30 marks Suggested: 54 minutes Varies per question (3–10 marks)

⚠ **EXAM TIP — TIME DISCIPLINE IS MANDATORY**

The Evidence exam is 3 hours. Do NOT spend more than 2–3 minutes on any single MC question. If unsure: mark the answer that feels most technically precise, flag it, and return. For short-answer questions: allocate time in proportion to marks. A 3-mark question needs 5 minutes. A 20-mark question needs 35 minutes. Stop writing for that question when time is up — an incomplete answer to a 20-mark question that covers all the issues scores better than a perfect answer to the first five

issues only.

17.2 Attacking Multiple Choice Questions

- Every MC question involves a specific rule, case, or test. Read the question carefully to identify exactly what is being tested.
- Eliminate obviously wrong options first. Look for answers that misstate the standard (e.g., 'BOP' where 'BARD' applies), misidentify the case, or describe a rule from the wrong regime (civil vs criminal).
- 'All of the above' answers: If you are confident two options are individually correct and there is an 'all of the above' option — choose 'all of the above.' If any individual option is clearly wrong, eliminate 'all of the above.'
- Case-identification questions: Know your cases cold. The exam asks: 'What case is most relevant to...' Many questions have specific single-case answers (W(D), Grant, Handy, Mohan, Oickle, Khelawon, FH v McDougall, Lifchus). Know each case's specific holding — not just the general area of law.
- 'Which of the following is NOT hearsay' questions: Apply the two-part definition mechanically. Is it an out-of-court statement? Is it offered for the truth of its contents? If no to either → not hearsay.

17.3 Answering Short-Answer Questions

STRUCTURE FOR EVERY SHORT-ANSWER EVIDENCE QUESTION	
Step 1 IDENTIFY THE ISSUE	State the evidentiary issue precisely in one sentence. 'The issue is whether X's out-of-court statement to Y is admissible hearsay under the principled approach.' Don't write a general introduction — get to the issue immediately.
Step 2 STATE THE RULE	State the applicable rule with the leading authority: 'Under the principled approach established in R v Khan [1990] 2 SCR 531 and refined in R v Khelawon [2006] 2 SCR 787, hearsay evidence is admissible where the proponent establishes necessity and threshold reliability on the balance of probabilities.'
Step 3 APPLY TO THE FACTS	Apply EVERY element of the test to the specific facts. This is where marks are won or lost. Do not re-describe the law — connect each element of the test to the specific facts in the question. 'Here, necessity is established because X died before trial. As to reliability, the statement was made before any motive to fabricate existed, and X had personal knowledge of the events — establishing substantive reliability.'
Step 4 CONCLUDE	State a clear conclusion on the specific issue. Then note any limitations on use, required limiting instructions, or how the trier of fact should treat the evidence. 'Therefore, the statement is admissible under the principled approach. However, the jury must be instructed it can accept the statement as proof of the events described.'

17.4 Master Priority Guide — Topics by Exam Frequency

PRIORITY	TOPIC AND WHAT TO KNOW
★★★★★ CRITICAL	W(D) framework — three questions, applied to ANY criminal case where the accused testifies or defence evidence exists.
★★★★★	Hearsay: definition (truth of contents?), principled approach

CRITICAL	(Khan/Smith/Khelawon), KGB, admissions, all traditional exceptions. 2024/2025 cases: Dion, DB, Gordon, RA, MJL Enterprises.
★★★★★ CRITICAL	Character evidence: good character (dual purpose), SFE (Handy test — all 5 steps), Corbett (application, limiting instruction), rebuttal, material fact category.
★★★★★ CRITICAL	Confessions: Oickle four grounds, voir dire (Crown = BARD), s.10(b) Charter, Ordonio 2025 (Reid Technique).
★★★★★ CRITICAL	FH v McDougall: one civil standard, no W(D) in civil, adverse inference in civil.
★★★★ HIGH	Sexual activity evidence: s.276, twin myths, TWW 2024, Reimer 2024, in camera procedure, three conditions of s.276(2).
★★★★ HIGH	Expert opinion: Mohan four-part test, Abbey gatekeeper, Trochym (novel science), J(JL) (oath-helping), JN v CG 2023 (independence).
★★★★ HIGH	Privilege: SCP (class privilege, exceptions: Smith v Jones, McClure, crime-fraud), litigation privilege, Wigmore, s.278 CC third-party records, spousal privilege.
★★★ IMPORTANT	Grant s.24(2): three lines, Harrison, Tim — serious Charter violations and confessions.
★★★ IMPORTANT	Cross-examination: Browne v Dunn, Lyttle (good faith), Ghorvei (no prior judicial findings), collateral fact rule + exceptions, ss.10-11 CEA, s.9 CEA hostile witnesses.
★★★ IMPORTANT	Eyewitness identification: Hibbert warning, factors affecting reliability, dock identification.
★★★ IMPORTANT	Judicial instructions: W(D) direction, Vetrovec warning, Duncan instruction, Hibbert warning, Cassibo limiting instruction.
★★★ IMPORTANT	Civil evidence: BOP standard, res ipsa loquitur (Fontaine), criminal acquittal/conviction in civil (Toronto v CUPE), adverse inference, discovery evidence.
★★ STUDY	No case to meet motion: Arcuri test, standard, judge's role.
★★ STUDY	Judicial notice: adjudicative facts (Find), social framework, systemic racism (Spence, RDS).
★★ STUDY	Witnesses: competence/compellability (s.16/16.1 CEA, s.4 CEA spousal), s.5 CEA self-incrimination protection, special measures (s.486.2 CC).
★★ STUDY	Electronic evidence: ss.31.1-31.8 CEA, authentication of social media/digital evidence.
★ REVIEW	Aboriginal/Indigenous evidence: Delgamuukw, Mitchell, s.35 Constitution Act.
★ REVIEW	Corroboration: Vetrovec warning (Brooks), confirmatory evidence requirements.

APPENDIX A: Master Case Law Reference

Tab this appendix for quick reference during the exam. All cases are organized by topic.

A. Burden and Standard of Proof

CASE	KEY PRINCIPLE
R v Lifchus [1997] 3 SCR 320	Definition of reasonable doubt: based on reason and common sense, logically connected to evidence, not imaginary or frivolous, not requiring absolute certainty. The gold standard instruction.
R v Starr [2000] 2 SCR 144	BARD is much closer to absolute certainty than to balance of probabilities. Also relevant to threshold reliability for hearsay admissibility.
R v W(D) [1991] 1 SCR 742	Three-question credibility framework. Not a credibility contest. Applies in jury and judge-alone trials (JHS).
R v JHS [2008] SCC 30	W(D) applies in judge-alone trials. Failure to follow W(D) logic is reversible error even without explicit use of W(D) language.
FH v McDougall [2008] 3 SCR 41	ONE civil standard: BOP. No heightened standard for serious allegations. W(D) does not apply in civil proceedings.
Toronto (City) v CUPE Local 79 [2003] SCC 63	Criminal acquittal not binding on civil proceedings. Issue estoppel does not apply cross-regime. Abuse of process may prevent relitigation in extreme cases.
R v Arcuri [2001] 2 SCR 828	No case to meet: the test is whether there is evidence upon which a properly instructed jury could convict. Judge does not weigh evidence (in jury trial); limited weighing in judge-alone trial.

B. Character Evidence

CASE	KEY PRINCIPLE
R v Handy [2002] 2 SCR 908	SFE test: probative value (degree of similarity, no collusion) must SUBSTANTIALLY outweigh prejudicial effect. Identify specific non-propensity purpose. Full five-step analysis required.
R v Corbett [1988] 1 SCR 670	Criminal record of testifying accused: s.12 CEA allows Crown to cross-examine. Judicial discretion to exclude/sanitize to prevent propensity misuse. Limiting instruction mandatory.
R v McNamara (No.1) [1981] ONCA	Good character serves dual purposes (credibility and propensity). Crown may rebut once door opened. Character witnesses can be cross-examined on specific inconsistent acts.
Saskatchewan v Racette 2020 SKCA 2	Third-party SFE: Handy test applies but accused's s.7 Charter right weights toward admission. Lower bar than for Crown SFE.
MAM v JPM 2024 PECA 13	Confirms Handy framework. Must identify specific purpose; strong similarity connection required. Not mere repetition of offence type.

C. Sexual Activity Evidence

CASE	KEY PRINCIPLE
R v Seaboyer [1991] 2 SCR 577	Original s.276 struck down. Constitutional framework: SFE admissible only where PV not substantially outweighed by PE and it goes to specific issue beyond twin myths. Led to current s.276.
R v TWW 2024 SCC 19	Current law. Ask: Is the inference offered through twin myth

	reasoning? If yes → s.276(1) excludes. If legitimate non-myth purpose → s.276(2) three-part test applies.
R v Reimer 2024 ONCA 519	Applies TWW. In camera procedure mandatory. Trial judge must identify specific purpose. Ruling without s.276(2) analysis is reversible error.

D. Hearsay

CASE	KEY PRINCIPLE
R v Khan [1990] 2 SCR 531	Principled approach established: necessity + reliability. Child's statement admitted where child could not testify and circumstances provided trustworthiness.
R v Smith [1992] 2 SCR 915	Principled approach applies to adult declarants. Necessity: death. Reliability: spontaneous, no motive to fabricate.
R v Khelawon [2006] 2 SCR 787	Definitive principled approach case. Threshold reliability (not ultimate). Procedural OR substantive reliability. Standard: BOP.
R v B(KG) [1993] 1 SCR 740	Prior inconsistent statements for truth: oath + videotaped + opportunity to cross-examine at trial = KGB conditions met. Principled approach satisfied.
R v Starr [2000] 2 SCR 144	Threshold reliability standard: must have sufficient basis to justify admitting hearsay. Also: BARD closer to absolute certainty than BOP.
R v Gordon 2022 ONCA 799	Adoptive admissions: silence in police interrogation is NOT an adoptive admission (right to silence). Must genuinely call for a denial in the circumstances.
R v Nurse 2019 ONCA 260	Dying declarations: all conditions restated. 'Hopeless expectation of death' strictly applied. The declarant must themselves believe they are dying.
R v RA 2024 ONCA 696	Spontaneous utterances: declarant must be in grip of the event. Time elapsed and state of mind at time of statement are the key factors.
Briscoe Estate v Canadian Premier Life Ins. 2012 ONCA 854	State of mind/intention exception: present intentions/plans admissible to prove those intentions. Cannot be used to prove past events.
Samuel v Chrysler 2007 BCCA 431	Civil hearsay — physical sensations: present physical condition admissible. Must reflect then-existing state.
R v DB 2024 ONCA 546	Principled approach applied to prior statements by unavailable witness. Corroboration goes to substantive reliability. Threshold (not ultimate) reliability is the standard.
R v MacKinnon 2022 ONCA 811	Prior consistent statements by accused: generally inadmissible to bolster credibility. Exceptions: rebut recent fabrication; principled approach where N+R met.
R v Dion 2025 ONCA 7	Most recent principled approach case. Threshold reliability confirmed as the admissibility standard. Applied to unavailable witness's prior statement.
MJL Enterprises v SAL	Civil hearsay — party admissions: same adversarial rationale as

Marketing 2025 ONCA 120	criminal. Prior communications admissible as admissions regardless of reliability.
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E. Confessions

CASE	KEY PRINCIPLE
R v Oickle [2000] 2 SCR 3	Modern confessions rule: four grounds (inducements, oppression, operating mind, police trickery). Totality of circumstances. Crown: BARD.
R v Ordonio 2025 ONCA 135	Reid Technique: not per se involuntary, but can constitute oppression when combined with other coercive factors. False confessions and vulnerable accused. Essential 2025 case.
R v Hebert [1990] 2 SCR 151	Undercover officer eliciting statements after accused invoked right to silence = abuse of process/police trickery. Excluded.
R v Grandinetti [2005] SCC 5	Person in authority: subjective test (accused's belief) + objective check. Private investigator working with police = person in authority on these facts.
R v Manninen [1987] 1 SCR 1233	S.10(b) Charter: police must stop questioning after counsel is requested. Violation leads to exclusion under Grant. One of the most serious Charter breaches in interrogation context.

F. Expert Opinion

CASE	KEY PRINCIPLE
R v Mohan [1994] 2 SCR 9	Four-part test: relevance + necessity + no exclusionary rule + properly qualified expert. Profile evidence excluded — usurps jury's function.
R v Abbey 2009 ONCA 624	Two-stage framework: Mohan threshold + gatekeeper (PV vs risks of prejudice, confusion, usurpation). Robust judicial gatekeeping role.
R v Graat [1982] 2 SCR 819	Lay opinion: composite observations (e.g., intoxication) admissible. Three conditions: first-hand perception, helpful, not requiring specialized knowledge.
R v Trochym [2007] SCC 6	Hypnotically refreshed memory excluded — scientifically unreliable. Courts must assess methodology, not just credentials. Novel science requires reliability evidence.
R v J(JL) [2000] SCC 51	Expert on child credibility excluded — usurps jury's function (oath-helping). Necessity test not met: jury can assess child witness credibility without expert direction.
JN v CG 2023 ONCA 77	Expert independence: primary duty to court. Advocate-expert may be excluded or given minimal weight. Trial judge has gatekeeper role to ensure objectivity.
R v RDS [1997] 3 SCR 484	Social context evidence: a judge may take account of systemic racial bias in policing. Judicial awareness of social reality is proper reasoning, not bias.

G. Privilege

CASE	KEY PRINCIPLE
Smith v Jones [1999] 1 SCR 455	Public safety exception to SCP: serious harm (death/serious bodily harm) + identifiable victim + credible and imminent threat = privilege yields.
R v McClure [2001] 1 SCR 445	Innocence at stake exception to SCP: two-stage test. Information must be NECESSARY (not merely helpful) for full answer and defence.
Blank v Canada [2006] SCC 39	Litigation privilege: dominant purpose test. Temporary (ends with litigation). Covers third-party communications. Distinct from SCP.

H. Cross-Examination and Credibility

CASE	KEY PRINCIPLE
Browne v Dunn (1893)	Fairness rule: must put contradictory position to a witness before calling contradictory evidence. Multiple remedies for breach.
R v Lyttle [2004] 1 SCR 193	Good faith basis for cross-examination suggestions. Need not have proof — but cannot make suggestions based on known fabrications. Fundamental right of accused.
R v Ghorvei [1999] ONCA	Cannot cross-examine on prior judicial credibility finding (another judge found them a liar). Not admissible in current proceedings.
R v Rose [1991] ONCA	S.9 CEA hostile witness procedure confirmed. Voir dire required. Prior inconsistent statement elicited under s.9 goes to credibility only — not truth (Cassibo warning).
R v Cassibo [1982] ONCA	Limiting instruction on prior inconsistent statements under s.9 CEA is mandatory. Jury must be told: PIS goes to credibility only, not as proof of the facts stated.
R v Hibbert [2002] 2 SCR 445	Eyewitness identification: mandatory warning of specific dangers. Factors affecting reliability. Dock identification given minimal weight.
R v Vetrovec [1982] 1 SCR 811	Abolished mandatory corroboration warning. Discretionary/sometimes obligatory Vetrovec warning for unsavoury witnesses. Confirmatory evidence must be independent and connect accused to offence.
R v Brooks [2000] 1 SCR 237	Vetrovec warning is mandatory where there is a realistic concern the jury might act on unsavoury witness's testimony without confirmation.

I. Charter, Grant, and Civil Special Topics

CASE	KEY PRINCIPLE
R v Grant [2009] 2 SCR 353	S.24(2) three-line balancing test: seriousness of violation + impact on accused's rights + society's interest in adjudication on merits.
R v Harrison [2009] 2 SCR 494	Applies Grant: arbitrary stop and search → serious privacy invasion → exclusion despite good faith. Good faith alone is insufficient.

Fontaine v Insurance Corp of BC [1998] 1 SCR 424	Res ipsa loquitur absorbed into general negligence law. Where facts permit negligence inference → plaintiff satisfies BOP. No transfer of legal burden to defendant.
Polgrain Estate v Toronto East General Hospital [2008] ONCA 646	Civil claim proceeds independently of criminal acquittal. BOP and BARD are sufficiently different standards.
R v Spence [2005] SCC 71	Challenge for cause for racial bias: notoriously established social fact that racial bias exists in jury populations. Accused from racialized community + race as issue = automatic right to challenge for cause.
Delgamuukw v BC [1997] 3 SCR 1010	Aboriginal oral histories admissible in s.35 claims. Courts must adapt evidentiary rules. Eurocentric standards must not be used to automatically dismiss oral traditions.
R v Griffin [2009] SCC 28	Circumstantial evidence: 'only rational conclusion' instruction is wrong. BARD on totality of evidence — including all reasonable inferences — is the correct standard.

APPENDIX B: Decision Trees for Exam Use

TREE 1 — IS THIS HEARSAY? IS IT ADMISSIBLE?

HEARSAY ANALYSIS TREE	
Q1	Is this an OUT-OF-COURT STATEMENT? (Made outside the current trial proceedings.) If NO → not hearsay → proceed under other evidentiary rules. If YES → Q2.
Q2	Is it being offered to prove the TRUTH OF ITS CONTENTS? (Offered to prove what was said is actually true.) If NO (verbal act / effect on listener / notice / not the point to prove it's true) → NOT HEARSAY. If YES → HEARSAY. Proceed to Q3.
Q3	Does a TRADITIONAL EXCEPTION apply? • Party admission (express, adoptive, vicarious, co-conspirator)? • Dying declaration (homicide case, declarant knew dying, statement re cause of death)? • Spontaneous utterance / res gestae (under grip of startling event)? • State of mind / present intention? • Declaration against interest (penal/financial, declarant unavailable)? • Past recollection recorded? • Prior testimony (under oath, opportunity to cross)? • Business records (s.30 CEA)? If YES → identify conditions, check all met → ADMISSIBLE. Note any limiting instruction required → DONE.
Q4	No traditional exception? Apply the PRINCIPLED APPROACH: (a) NECESSITY: Why can't the declarant testify? (Death / unavailability / recantation = practical unavailability) (b) RELIABILITY (procedural): Was statement made under oath / videotaped /

	subject to cross at the time? (c) RELIABILITY (substantive): Do the circumstances of the statement provide adequate trustworthiness? (Spontaneous / against interest / corroborated / no motive to fabricate?) All satisfied on BOP? → ADMISSIBLE (subject to residual discretion). Necessity or reliability not established? → INADMISSIBLE.
Q5	Even if admissible: Is there a LIMITING INSTRUCTION required? (e.g., admitted for truth under KGB → jury can treat as proof; admitted only to assess credibility → jury told: not proof of the facts). State the required instruction.

TREE 2 — CHARACTER EVIDENCE ANALYSIS

CHARACTER EVIDENCE DECISION TREE	
Q1	Is this GOOD or BAD character evidence? Good character of accused → admissible in criminal trial for both credibility (if accused testifies) and propensity (innocent conduct — always). Crown rebuttal: available if accused opened the door. → DONE.
Q2 (Bad Character)	Who is OFFERING the bad character evidence? • CROWN → presumptively inadmissible; must fit an exception. • DEFENCE (about third party) → Racette; Handy framework applies but lower bar (s.7 Charter).
Q3 Crown — which category?	Category 1 — SFE? → Run full Handy test: (a) specific non-propensity purpose? (b) degree of similarity → PV? (c) PV SUBSTANTIALLY outweighs PE? (d) No collusion? → If yes, admissible with limiting instruction. Category 2 — Relevant to material fact (motive, opportunity, narrative, absence of mistake)? → Admissible under general relevance rules; no Handy required. Category 3 — Credibility? → Corbett (accused testifies, s.12 CEA); cross on criminal record (witnesses, at common law).
Q4 Limiting Instruction	Is a limiting instruction required? Always for criminal record (Corbett) and for SFE admitted for specific purpose only.

TREE 3 — CONFESSIONS ANALYSIS

CONFESSIONS DECISION TREE	
Q1	Was the statement made to a PERSON IN AUTHORITY? (Police, Crown, or person accused reasonably believed could affect treatment — Grandinetti.) If NO → ordinary witness evidence rules. If YES → proceed.
Q2 Voluntariness	Was the statement VOLUNTARY? Crown must prove BARD. Run Oickle: (a) INDUCEMENTS: Threats or promises that would have caused a reasonable person to speak? (b) OPPRESSION: Conditions so oppressive they overwhelmed the accused's will? (c) OPERATING MIND: Did the accused understand what they were saying and the consequences?

	(d) POLICE TRICKERY: Was the conduct so offensive that admission would bring the administration of justice into disrepute?
Q3 Reid Technique?	Was the Reid Technique used? (Confrontational, false evidence claims, minimization/maximization.) → Apply Ordonio 2025: not per se involuntary, but combined with other factors → may constitute oppression. Assess totality. Especially careful where accused is young, distressed, or cognitively vulnerable.
Q4 Charter	Was s.10(b) violated? (Accused requested counsel → police continued questioning before counsel provided → Manninen.) If yes → run Grant test: seriousness of violation (high — s.10(b) breaches are treated seriously); impact on accused's rights (high — conscripted evidence); society's interest (depends on offence seriousness). → Likely exclusion.
Voir Dire	Voir dire required: jury excluded; Crown leads evidence on voluntariness; accused may testify (protected — not usable at trial); judge rules on BOP. If admitted: ALL of statement goes in (completeness). Limiting instruction on specific content if required.

TREE 4 — EXPERT OPINION ANALYSIS

EXPERT EVIDENCE DECISION TREE	
Lay Opinion?	Is this a lay witness giving a composite observation (speed, intoxication, emotional state)? → Apply Graat: rationally based on first-hand perception, helpful, no specialized knowledge required. If yes → admissible as lay opinion.
Stage 1 Mohan Test	(1) RELEVANT to a material issue? (2) NECESSARY — outside jury's knowledge and they need it? (3) No exclusionary rule prevents admission? (4) Expert PROPERLY QUALIFIED in this specific area? All four → threshold met.
Stage 2 Gatekeeper	Does PV of expert evidence SUBSTANTIALLY outweigh its risks? Risks: usurping jury's function, unreliable methodology (Trochym), oath-helping (J(JL)), lack of independence (JN v CG). If risks outweigh → excluded even if Mohan is satisfied.
Social Framework	Social framework evidence (systemic racism, domestic violence dynamics, eyewitness reliability): generally admissible under Mohan as providing necessary context the jury lacks. The expert must have genuine expertise in the specific area. Cannot testify that the specific witnesses are truthful or that the accused committed the acts.

APPENDIX C: Exam-Day Quick Reference

THE NINE ESSENTIAL TESTS — KNOW THESE COLD

TEST	ELEMENTS
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W(D) R v W(D) [1991]	(1) Believe accused → acquit. (2) Don't believe but in doubt → acquit. (3) On evidence accepted → BARD = conviction. Applies in jury and judge-alone trials. No W(D) in civil.
GRANT s.24(2) R v Grant [2009]	(1) Seriousness of Charter violation. (2) Impact on accused's Charter rights (privacy, bodily integrity, right to counsel). (3) Society's interest in adjudication on merits (reliability + seriousness of offence). Balance all three.
HANDY (SFE) R v Handy [2002]	(1) Identify specific non-propensity purpose. (2) Assess PV (degree of similarity, no collusion). (3) Assess PE (moral and reasoning prejudice). (4) PV must SUBSTANTIALLY outweigh PE. (5) Consider collusion.
MOHAN (Expert) R v Mohan [1994]	(1) Relevant. (2) Necessary (outside jury's knowledge). (3) No exclusionary rule. (4) Properly qualified expert. Plus Abbey gatekeeper: PV vs risks of prejudice/usurpation.
OICKLE (Confessions) R v Oickle [2000]	Crown proves BARD: No (1) inducements; (2) oppression; (3) absent operating mind; (4) police trickery. Totality of circumstances. Reid Technique → Ordonio 2025.
KHAN/KHELAWON (Hearsay) Principled Approach	(1) NECESSITY (declarant unavailable in ordinary sense). (2) RELIABILITY: procedural (oath/video/cross) OR substantive (circumstances of trustworthiness). Standard: BOP. Threshold, not ultimate, reliability.
FH v McDOUGALL (Civil BOP)	ONE civil standard: BOP. No heightened standard. Serious/improbable allegation needs more cogent evidence — same standard. No W(D). Adverse inference available.
LIFCHUS (BARD) R v Lifchus [1997]	BARD: based on reason and common sense; logically connected to evidence; not imaginary, frivolous, or based on sympathy; does not require absolute certainty; much higher than BOP.
s.276 CC (Sexual Activity) R v TWW [2024]	s.276(1): Twin myths excluded. If offered through myth reasoning → excluded. s.276(2): (1) Specific instance; (2) Relevant to non-myth issue; (3) PV not substantially outweighed by PE. In camera procedure. Notice required.

CRIMINAL vs CIVIL QUICK COMPARISON

TOPIC	CRIMINAL	CIVIL
Standard of Proof	BARD (Lifchus)	BOP (FH v McDougall)
W(D) Framework	YES — mandatory	NO
Accused compellability	Not compellable (s.11(c) Charter)	Parties fully compellable
Adverse inference: no testimony	NO (s.11(c) Charter)	YES — inference available
Spousal compellability	Generally NO (s.4 CEA exceptions)	YES
s.5 CEA self-incrimination	Applicable	Applicable (protects civil testimony from criminal use)
Charter s.24(2) exclusion	YES (Grant test)	Not directly applicable
Criminal record (cross)	Corbett discretion (accused); CL (witnesses)	Generally admissible on credibility
Prior criminal acquittal	N/A	NOT binding (Toronto v CUPE)

Prior criminal conviction	N/A	Admissible as evidence of the act
SFE threshold	Handy: PV SUBSTANTIALLY outweighs PE	Same Handy test, civil context
Hearsay standard	Principled approach (Khan/Khelawon)	Principled approach + broader statutory exceptions
Res ipsa loquitur	N/A	Fontaine: inference from circumstances, no burden shift
No case to meet	YES — Arcuri test	YES — summary judgment motion

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